



PARLIAMENTARY DEBATES

OFFICIAL REPORT

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

SECOND MEETING, 2025

Thursday, 10th July, 2025

The House met at 2.28 p.m.

[MR FIRST DEPUTY SPEAKER IN
THE CHAIR]

[PRAYERS]

Mr First Deputy Speaker: Hon Members, let us turn to the Order Paper for today, Thursday 10th July, 2025. Hon Members, the item numbered 5 — Correction of *Votes and Proceedings* and the Official Report.

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

Mr First Deputy Speaker: Hon Members, the *Votes and Proceedings* of Thursday, 9th July, 2025 is under consideration.

Page 1...7 —

Yes, Mr Frank Afriyie?

Mr Frank Afriyie: Mr Speaker, may I respectfully seek your education on this; not to stir up a hornet's nest though. We are yet to come to terms with the demise of our late Colleague, so, psychologically, I have taken notice of an issue that keeps disturbing some of us.

From Monday, the *Votes and Proceedings* have been capturing the late Mr Kumi, and then, into brackets, deceased. My understanding of the *Votes and Proceedings* is that those of us who are alive, who ordinarily are expected to come—

Mr First Deputy Speaker: Hon Member, ordinarily, I am not supposed to cut you short, but do not invite me into temptation. So, kindly resume your seat on this matter. Thank you very much.

Page 8...13 —

Yes, Hon Member?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, on page 13, the item numbered 10 (b), the direction you gave was in respect of the fact that “sufficient copies” and not just “copies” be given to Members. So, if the Table Office can let that be captured.

Mr First Deputy Speaker: Very well. I really said “sufficient”. So, Table Office, kindly take note.

Page 14 —

Yes, Hon Asamoah?

Dr Fred Kyei Asamoah: Mr Speaker, with your leave, I would like to take us back to page 9, the item numbered 8 (iv)

Mr First Deputy Speaker: Hon Members, let me indicate that we should all read the *Votes and Proceedings* ahead of time, so that we stop the back and

forth. I am usually not happy when we are at page 14, and you are taking us back to page 9. It does not make the record straight. Yes, we are now at page 9.

Dr Asamoah: Thank you, Mr Speaker. The item numbered 8 (iv), line 3, the name “Gideon Owusu-Sarpon” is spelt S-a-r-p-o-n-g, not S-a-r-p-o-n.

Mr First Deputy Speaker: So, what is the correct spelling?

Dr Asamoah: The correct spelling is S-a-r-p-o-n-g.

Mr First Deputy Speaker: All right. So, Table Office, kindly take note.

Dr Asamoah: Mr Speaker, with that same paragraph, the inverted commas should be removed from “vendors and customers”

Mr First Deputy Speaker: Which page?

Dr Asamoah: Mr Speaker, the same page 9 and the item numbered 8(iv).

Mr First Deputy Speaker: Very well. Table Office, kindly take note. Now, back to page 15 —

Yes, Mr Frank Afriyie, you have the floor.

Mr Afriyie: Mr Speaker, the item numbered 6, on the amendment that stood in the name of Prof Nyarko, the spelling of Prof Nyarko has been wrongly captured. I suggest that the “a” after “n” be deleted.

Mr First Deputy Speaker: You are right. Table Office, kindly take note. Page 16...18—

Yes, Hon Majority Chief Whip.

Mr Dafeamekpor: Mr Speaker, page 17, the item numbered 3 (i); the Hon Member for Asawase, wears a double hat. He is the Minister for the Interior as well as Minister responsible for National Security. So, Table Office should consequentially indicate that.

2.38 p.m.

Mr First Deputy Speaker: Table Office, kindly take note.

Page 19...22—

Hon Members, the *Votes and Proceedings* of Wednesday, 9th July, 2025, as corrected, is hereby adopted as the true record of proceedings.

Hon Members, we would consider the *Official Reports* of 1st, 2nd and 7th July, 2025. Starting with 1st July, any corrections?

[Pause]

Hon Members, in the absence of any corrections, the *Official Report* of 1st July, 2025 is hereby adopted as the true record of proceedings.

Now, *Official Report* of 2nd July, 2025 is up for correction. Hon Members, any corrections?

Hon Members, in the absence of any corrections, the *Official Report* of 2nd July, 2025 is hereby adopted as the true record of proceedings.

Now, the *Official Report* of 7th July, 2025. Hon Members, any corrections?

Yes, Hon Frank Afriyie?

Mr Frank Afriyie: Mr Speaker, thank you. This is just a minor observation on column 4, the very last paragraph, line 2. I suggest we insert the word “was” between “he” and “born”, so that the rendition would be “he was born”. Then again, column 3, paragraph 5, line 2. I suggest we delete the word “the”, so that it reads, “I rely on Order 92”. Thank you.

Mr First Deputy Speaker: Table Office, take note and do the needful. Any further corrections? Hon Members, in the absence of any further corrections, the *Official Report* of 7th July, 2025, is hereby adopted as the true record of proceedings.

Hon Members, my attention has been drawn to the fact that we have the *Official Report* of 3rd July, 2025. Let us take that one up, correct it and have it adopted.

So, the *Official Report* of 3rd July, 2025, is up for correction. Hon Members, it is on the console if you do not have a hard copy. Any correction? Hon Members, in the absence of any correction, the *Official Report* of 3rd July, 2025 is hereby adopted as the true record of proceedings.

We have student visitors in the House; indulge me to acknowledge them. They are from Kukurantumi Roman Catholic JHS. Their leader is Ms Mary Ansomaa Dankyi, Municipal STEM Coordinator. They are from Abuakwa North, they are 67 in number.

[Students of Kukurantumi Roman Catholic JHS were acknowledged]

Peki Dzogbati E.P./DA Basic School, led by Mr Maurice Hini, headmaster. They are from South Dayi. They are 91 in number.

[Pupils of Peki Dzogbati E.P./DA Basic School were acknowledged]

Is the Member of Parliament for the area around? May you be on your feet and wave to your students.

[The Hon Member for South Dayi stood and waved to students of Peki Dzogbati E.P./DA Basic School.]

Is the MP for Abuakwa North around?

Nana Ampaw Kwame Addo-Frempong: Yes, I am here.

Mr First Deputy Speaker: May you be on your feet to equally wave to your students.

[The Hon Member for Abuakwa North stood and waved to students of Kukurantumi Roman Catholic JHS]

Hon Members, on your behalf, I welcome all of them and wish them a fruitful visit to the Parliament of the

Republic of Ghana. Once again, you are most welcome. May you now resume your seats.

Hon Members, the item numbered 6 on page 2 of today's Order Paper, Questions. Questions have been scheduled for the Minister for Food and Agriculture. He is seated to respond to those Questions.

The first Question on the Order Paper is Question number 149, standing in the name of Hon Charles Forson, Member of Parliament for Tema Central.

Mr Ralph Poku-Adusei: — *rose* —

Mr First Deputy Speaker: Hon Member, may you move to your seat and ask the Question.

[Mr Ralph Poku-Adusei moved from the Minority Frontbench to his seat]

Hon Member, you have the floor.

Mr Ralf Poku-Adusei: Mr Speaker, I have the authorisation of Mr Charles Forson, the Hon Member for Tema Central, to ask the Questions on his behalf. Mr Speaker, if I may seek your permission, pursuant to Order 88 (3) and ask the Question.

Mr First Deputy Speaker: The leave is hereby granted. You may proceed to ask the Question.

ORAL ANSWERS TO QUESTIONS

MINISTRY OF FOOD AND AGRICULTURE

Maintenance of Current Cocoa Price Despite Price Increase in La Côte d'Ivoire

Mr Ralph Poku-Adusei *on behalf of Mr Charles Forson (NPP—Tema Central):*

Mr Speaker, I beg to ask the Minister for Food and Agriculture why Ghana has maintained the current cocoa price despite the recent announcement of a cocoa price increase in Côte d'Ivoire.

Mr First Deputy Speaker: Yes, Hon Minister?

Minister for Food and Agriculture (Mr Eric Opoku) (MP): Thank you very much. Mr Speaker, this House exercised its legislative powers and moved the Ghana COCOBOD from the Ministry of Food and Agriculture to the Ministry of Finance. Consequently, the Ministry of Food and Agriculture is unable to answer a Question relating to an Agency under the supervision of the Ministry of Finance.

Mr Speaker, the Hon Member may redirect this Question to the Ministry of Finance.

Mr First Deputy Speaker: Hon Member, do you have any supplementary questions?

Mr Poku-Adusei: Mr Speaker, certainly not. *[Laughter]*

Mr First Deputy Speaker: Hon Members, order!

May we then move to the Question numbered 230, standing in the name of Hon Seth Osei-Akoto, Member of Parliament for Atwima Mponua. Hon Member, you have the floor.

Policies to Attract Private Sector Investment to Crop Production Value Chain

Mr Seth Osei-Akoto (NPP—Atwima Mponua): Thank you, Mr Speaker. I beg to ask the Minister for Food and Agriculture the policies being instituted to attract private sector investment into the crop production value chain.

2.48 p.m.

Mr Opoku: Thank you very much, Mr Speaker. Agriculture in Ghana is private sector-led. The role of the public sector is to create an enabling environment for the private sector to invest and grow in the sector.

Mr Speaker, to create the enabling environment for the private sector participation, we have begun with the provision of irrigation infrastructure to transition agriculture of Ghana from its current status to all year-round production.

Mr Speaker, notably, Ghana is blessed with irrigable lands estimated at

1.9million hectares, but only 6 per cent is currently under effective irrigation system. Increasing the land under irrigation will certainly attract more private sector investors to take advantage of these facilities to increase production and maximise profits.

Mr Speaker, a key policy is the establishment of Farmer Service Centres. This policy of the Government is to establish Farmer Service Centres in all the agricultural districts of the country to serve as a one-stop-shop for all farmers. These Centres would provide farmers with unimpeded access to agriculture mechanisation, quality and weather resilient seeds, and prescribed high quality fertiliser and extension service delivery. These are critical services required to increase agriculture production and productivity and therefore offer opportunity to attract more investment into agriculture.

Mr Speaker, another key policy is the Feed the Industry programme. Under this policy, Government intends to establish a strong relationship between agriculture and industry. Mr Speaker, every producer produces in anticipation of demand. The availability of agro processors would serve as a huge market for agricultural produce and will therefore attract more private investment into agriculture.

Mr First Deputy Speaker: Yes, Hon Member, that is the Answer. Any supplementary question?

Mr Osei-Akoto: Yes, please. Mr Speaker, I want to find out from the Hon

Minister how the policies are being coordinated with the Ministry of Trade, Agribusiness and Industry to avoid duplication and coherence.

Thank you.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr E. Opoku: Mr Speaker, the Ministry of Food and Agriculture is responsible for the production of food and the Ministry of Trade, Agribusiness and Industry is responsible for value addition, so the two of us are working together. If they have the agro-processors under the Ministry of Trade, Agribusiness and Industry and they do not have raw materials from the Ministry of Food and Agriculture to keep the industries in sustainable operation, certainly they cannot work. So, the two of us are working together to ensure that we develop the entire value chain and ensure prosperity is delivered onto the people of Ghana.

Mr First Deputy Speaker: Yes, Hon Member?

Mr Michael Baafi Okyere: Mr Speaker, I just want to find out from the Hon Minister whether the Feed the Industry policy will be directly under his Ministry or the Ministry of Trade, Agribusiness and Industry?

Mr First Deputy Speaker: Hon Member, I would advise that you file a fresh question. This question is on policies being instituted to attract private

sector investments in crop production. So, the question is overruled.

Mr Frank Annoh-Dompreh: Mr Speaker, with respect, you are not wrong. Order 89 is clear, but the Hon Minister actually made reference to what the Hon Member is trying to ask the question on. Mr Speaker, if you may exercise your discretion, notwithstanding the provision

Mr First Deputy Speaker: Well, I am looking at the Rules.

Hon Members, let us move to the Question numbered 231, standing in the name of Mr Francis Kwabena Owusu Akyaw, Member of Parliament for Juaben.

Yes, you have the floor.

Policy Measures to Enhance Crop Production Throughout the Country

Mr Francis Kwabena Berepong Owusu-Akyaw (NPP — Juaben): I rise to ask the Minister for Food and Agriculture what policy measures the Ministry is implementing to enhance crop production throughout the country.

Thank you.

Mr E. Opoku: Mr Speaker, the Ministry of Food and Agriculture under its Feed Ghana Programme initiatives is implementing its sub critical programmes to boost food crop production nationwide. Below are some of the sub programme under the Feed Ghana Programme nationwide:

Sub-Programme 1: Crop development which aims to boost productivity in grains, legumes, vegetables, starchy crops using SMART Agriculture. Key interventions include improved seeds, mechanisation, irrigation, storage, and training to address low yields, high post-harvest losses, and climate challenges.

Sub-Programme 2: Establishing of Farmers' Service Centres (FSCs) nationwide which will serve as a one-stop hubs, providing farmers with inputs, mechanisation, extension services, and market access.

Sub-Programme 3: We have embarked on a campaign on Institutional Farming which targeted supports for schools, prisons, and security agencies, and faith-based groups in farming to enhance food supply and skills training.

Sub-Programme 4: Feed the Industry (Tree Crops Development) which focuses on cashew, coconut, oil palm, and shea to boost industrial raw material supply.

Sub-Programme 5: Agro-production enclaves which aims at developing large-scale, integrated farming zones with irrigation, warehouses, and processing facilities to attract private investment.

Mr Speaker, other major activities undertaken or yet to be done in due course under the Feed Ghana Program include:

1. Launch of a Nationwide Farmer Cooperative Initiative: This aims to strengthen farmer-based

organisations by enhancing their collective bargaining power and improving access to resources and markets.

2. Launch of the "Irrigation for Wealth Creation" Project (Phase I): This initiative targets the development of 10,000 hectares of irrigated land across eight regions—Volta, Oti, Central, North-East, Northern, Savannah, Upper West, and Upper East—within 12 months. The goal is to increase agricultural output and reduce dependence on unpredictable rainfall patterns.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Member, any supplementary question?

Mr Owusu-Akyaw: Yes, Mr Speaker. Mr Speaker, according to the Hon Minister, the sub-programme three talks about support for the schools and the prisons. I want to find out from the Minister if the Ministry is going to assist the schools in terms of getting the farmlands in producing. If yes, are they going to produce for exports or for the school consumption alone?

Thank you.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr E. Opoku: Mr Speaker, the school farming is very important to us for two major reasons. One, when we go to our

secondary schools and we see some of the students in breach of school rules, they are assigned portions of the school land to weed as a form of punishment. This has created the erroneous impression among students that weeding is a form of punishment. But it is a profession that sustains livelihoods and we think that we must work to ensure that we put this into our upcoming generation. So, what we want them to do is to take advantage of the rich soil around them to have school farms that would produce to support school feeding. Because sometimes we hear in the news that these secondary schools are not getting food; they are crying, among others. We think that if we are able to mobilise them to participate in this process, they can produce a lot to support their own feeding. So, it is not meant for export. We want them to produce the vegetables and the small foodstuff they can produce to support whatever Government offers to ensure that we improve the food qualitatively and quantitatively.

Mr First Deputy Speaker: Thank you very much.

Yes, Hon Osei-Akoto?

Hon Questioner, I think we have reached some consensus. I will take one supplementary question.

Yes?

Mr Osei-Akoto: Thank you, Mr Speaker. I want to find out from the Hon Minister the status of implementation of the key interventions he has enumerated so far under sub-programme one.

2.58 p.m.

Mr E. Opoku: Thank you, Mr Speaker. Sub-programme one is the crop development programme.

Under the Crop Development Programme, we have started with the Farmer Cooperatives.

From March to today, we have succeeded in establishing 29,000 Farmer Cooperatives across the country. Once we have the cooperatives, we are linking them to the extension officers and they are educating them. We are giving them the inputs and we are also sending the processors to the production enclaves. We are asking them to deploy mini processing plants to the various processing enclaves, so that when they produce, these people will buy. Once there is market, everybody will be willing to go into the production so long as market exists. So, that is exactly what we are doing. In fact, in the constituency of the Hon Member, we have distributed fertilisers to some farmers which he is aware of.

Mr Frank Annoh-Dompreh: Mr Speaker, it is good to see the Minister once more and we pray that he comes to the House more often.

Mr Speaker, the second paragraph of the Answer of the Minister alludes to smart agriculture and I know he is very knowledgeable in this area. However, the challenge of the availability of extension officers comes in its wake, fresh challenges in the implementation of smart agriculture measures.

What is the Ministry doing under his leadership to ensure that, at least, the ratio of farmer to extension officer is improved as we seek to improve on or convince farmers to adopt smart agriculture measures?

Mr E. Opoku: Mr Speaker, yes, extension service delivery is critical in the development of agriculture because they bring modernity to agriculture. They bridge the gap between the researchers and the farmers.

But, Mr Speaker, records in the Ministry indicate that, from 2015, all the students or most of the students who completed our agricultural colleges and veterinary schools are still in the house unemployed, so we have to put in place mechanisms to ensure that they are employed, so that they can bring their expertise to bear on food production in our country.

Mr Speaker, this is what the Ministry is doing. Looking at the fiscal limitations, we have arranged with the National Service Authority to employ 5,000 of them for a period of four years. So, as and when we create a space in the payroll, then we migrate them onto the government payroll. If we are able to do this, we will bring their expertise on board, grow our nation together, create that fiscal space together and give them gainful employment on the government payroll. That is exactly what we are doing—[*Hear! Hear!*]

Mr First Deputy Speaker: We now move to the Question number 232, standing in the name of Dr Isaac Yaw

Opoku, Member of Parliament for Offinso South.

Alternative Measures to Assist Farmers with Seedling Production

Dr Isaac Yaw Opoku (NPP — Offinso South): Mr Speaker, I beg to ask the Minister for Food and Agriculture the alternative measures the Ministry is deploying to assist farmers with seedling production, given the challenges associated with relying on topsoil for raising seedlings and its impact on productivity.

Mr E. Opoku: Mr Speaker, modern agricultural practises demand the consideration of sustainability in agricultural production. In agricultural production, access to quality seeds, including seedlings, that are adapted to the needs and production systems of farmers is an essential feature of sustainable crop production. A sustainable seed system ensures that farmers have timely access to affordable quality seeds and planting materials of the most suitable crop varieties.

To this end, Mr Speaker, a nursery is needed for raising seedlings under intensive management for subsequent transplanting to the field. The nursery improves germination and colonisation, saves time, space, labour, and facilitates maintenance. For effective and efficient seedling production in the nursery, growing media, also known as growth substrates which includes topsoil, peats, *et cetera*, is required. The medium plays a crucial role in seedling production because they provide the necessary

support, aeration, moisture, and nutrients for plant roots, directly impacting plant health and productivity.

Mr Speaker, topsoil, which is normally used as substrate in the nursery, is the uppermost layer of soil, rich in organic matter and nutrients, making it a good foundation for plant growth. It provides a stable medium for roots to develop and access essential elements. It is often best when mixed with other materials like compost to improve drainage and nutrient availability. Topsoil provides a good base for seedlings to establish roots and access nutrients, but it may not be sufficient, on its own, for optimal growth, especially in the long term.

Adding compost to topsoil can significantly improve the growing medium. Compost introduces beneficial microbes, enhances drainage, and provides a slow-release source of nutrients, ensuring plants have a continuous supply of nourishment.

Mr Speaker, a good nursery bed mix often combines topsoil with compost and other materials like sand or peat moss to create a well-draining, and nutrient-rich environment. This mixture allows seedlings to establish strong root systems and thrive.

While topsoil is beneficial, it may not provide the ideal conditions for all plants, especially in a nursery setting where rapid and healthy growth is crucial. It can sometimes be heavy and prone to compaction, which can hinder drainage and root development. It may

also contain pathogens, weed seeds, and debris.

Mr Speaker, as a cardinal principle, the media for preparation of nursery beds should have the following characteristics:

- It should be firm enough to hold the seeds and curtains during germination and rooting;
- It should retain and supply sufficient moisture to the seeds or curtains;
- It must be porous enough to permit aeration and be able to drain out excess moisture;
- It should be free of high concentrations of salt; and
- It must not contain any weed seeds, pathogens, or nematodes.

Mr Speaker, given the challenges associated with the reliance on topsoil, which is the most common, the Ministry of Food and Agriculture is promoting the use of alternatives such as peat, decomposed sawdust, and compost for use as substrate for raising of seedlings in nurseries by nursery operators and farmers. Farmers are equally educated to mix form the substrate and properly sterilise to prevent the introduction of pests and diseases.

Mr Speaker, the Ministry believes that, with this approach, we will help address

the challenges associated with the use of topsoil in the production of seedlings.

Mr First Deputy Speaker: Hon Member, any supplementary question?

Dr Opoku: Mr Speaker, I want to thank the Minister for the detailed Response, but I want to find out from him if his Ministry has any plans of promoting the use of a soilless medium for seedling production?

3.08 p.m.

Mr E. Opoku: Mr Speaker, the Ministry has a plan to manage the soil in totality. At least a few days ago, the Hon Ranking Member, the Chairman, and the entire Committee were with us at the Ministry to discuss matters regarding what is happening in the Ministry and I took time to explain to them measures we are putting in place to manage the soil in order to enhance production.

I indicated that, for the first time in the history of this country, we are procuring modern equipment for the testing of our soils and that is being funded by the Food and Agriculture Organization (FAO) of the United Nations and that we are rehabilitating the Kumasi Soil Laboratory to international status.

It is going to be the first of its kind in the nation and that would give us the opportunity to test the soils in our various districts to avoid the blanket or wholesale application of fertiliser in the country.

So, Hon Member, measures are underway to manage the soil effectively. But let me indicate that this issue about topsoil and other things, in contemporary agriculture, is no more relevant because the soil must be managed to suit the production of the specific crop that we want. We even have hydroponics where people grow plants without soil. So, one only has to manage the soil to plant whatever they want, but in the olden days, because of limited technology, people talked about topsoil and how it is not good, and those kinds of things. Now, it is out of the contemporary agricultural dictionary.

Dr Opoku: Thank you very much, Mr Speaker.

Mr Speaker, on a lighter note, I just want to find out why the Hon Minister is now running away from the pricing of cocoa. Hon Eric Opoku of all people —

Mr First Deputy Speaker: Hon Member, you are completely out of order. Please, resume your seat. Hon Members, the rule is not for nothing.

Hon Members, let us move to the Question numbered 233, which stands in the name of Ralph Poku-Adusei, Member of Parliament for Bekwai.

Promotion of Climate Resilient Crop Varieties

Mr Ralph Poku-Adusei (NPP — Bekwai): Mr Speaker, I beg to ask the Minister for Food and Agriculture the steps being taken to promote climate-resilient crop varieties and strengthen

adaptive practices among farmers affected by erratic rainfall patterns.

Mr E. Opoku: Mr Speaker, thank you for the opportunity and let me thank you once again for ignoring the question posed by the Ranking Member.

Mr First Deputy Speaker: Hon Minister, once I have ruled him out of order, no comment is welcome.

Mr E. Opoku: Mr Speaker, I am praising you for that and this is just to indicate to him that this House is vested with powers.

Mr First Deputy Speaker: Hon Minister, take a cue and proceed to answer the Question under reference.

Mr E. Opoku: All right, Mr Speaker, let me proceed to answer the Question.

Mr Speaker, I wanted to crave your indulgence to deal with the question posed by Dr Opoku because it appears the Minority is interested in that.

Mr First Deputy Speaker: Hon Minister, the Question has been ruled out of order, so, please, answer the Question under reference.

Mr E. Opoku: I am guided, Mr Speaker, but I wish I would have the opportunity to deal with that issue.

Mr Speaker, with regard to the steps in promoting climate-resilient crop varieties, the Council for Scientific and Industrial Research (CSIR) and the Ministry, through its National Variety

Release and Registration Committee (NVRCC), have released climate-resilient varieties of the major staple food security priority crops such as maize, rice, cassava, soybean and cowpea for farmers to cultivate. The Feed Ghana Initiative will support the production of early generation seeds and certified seeds of these climate-smart seed varieties and make them available to farmers.

Mr Speaker, currently, the Ministry is collaborating with other Ministries, Departments and Agencies (MDAs) and agricultural projects to ensure that all agricultural seeds and planting material incentives provided to smallholder farmers are climate-resilient. Some of the projects include West Africa Food System Resilience Programme (FSRP), Savannah Agriculture Value Chain Development Project (SADEP), Ghana Landscape Restoration and Small-Scale Mining Project (GLRSSMP), SOCODEVI, among others.

Looking into the future, the Ministry is in the process of finalising its Long-Term Climate-Resilient Agricultural Strategy, named Agriculture LTC, to ensure a well-planned climate-resilient agricultural sector.

Mr Speaker, in the Food and Agriculture Sector Development Policy (FASDEP), there is a dedicated policy objective to respond to climate vulnerability challenges in the agricultural sector, which include ensuring sustainable breeding, multiplication and promotion of climate-resilient cropping and livestock systems.

In connection with the second part of the Question, which requires the step being taken to strengthen adaptive practise among smallholder farmers affected by erratic rainfall patterns, it is gratifying to note that the Ministry, since 2016, has been implementing the Climate-Smart Agriculture and Food Security Plan, which promotes climate change adaptation practices with smallholder farmers as the main beneficiaries. The issue has been scaling up the promotion of such practices.

Since more than 80 per cent of farmers in the country are smallholders who depend on rainfall for their agricultural activities, the Ministry has strengthened its collaboration with the Ghana Meteorological Agency (GMet) for the provision of weather information services.

Mr Speaker, such services have also been integrated into several projects across the country. The weather forecast, technically known as Climate Information Services (CIS), provides farmers with advisories on the best time to plant their crops and even the choice of crop varieties to plant, thus weather-short or long-duration varieties.

Mr Speaker, with the support of the extension service providers, the weather information services help farmers to select climate-resilient crop varieties to plant. Moreover, capacities of public extension service providers, especially the district and regional departments of agriculture, have been built to promote climate change adaptation practices across the country.

Mr Speaker, in addition to the capacity building of extension staff, the Ministry ensures that all agricultural projects mainstream climate change adaptation into project implementation. For example, technologies such as conservation, agriculture, moisture conservation, crop rotation, intercropping, mulching, *et cetera*, are integrated with the use of climate-resilient crop varieties.

Mr Speaker, the efforts of the Ministry go beyond crops. In collaboration with the Environmental Protection Authority (EPA), the Ministry is constructing dugouts in some Ghana Landscape Restoration and Small-Scale Mining Project beneficiary communities in northern Ghana to support livestock watering, especially during the long dry season in the northern part of the country.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Any supplementary questions?

Mr Poku-Adusei: Mr Speaker, I want to thank the Minister for such an elaborate Answer to the Question.

Mr Speaker, the Minister has indicated that there are about 80 per cent of farmers in the country who are smallholders, implying that these are farmers typically in the rural areas. Now, under the Ministry's collaboration with the Ghana Meteorological Agency to provide information concerning the weather pattern changes, I want to find out from the Minister if there are any

specific roadmaps designed by the Ministry, so that when we have this information, it can get to the local farmers, especially in the rural areas, such as the typical areas in my constituency, Bekwai.

Mr E. Opoku: Mr Speaker, yes, we have had discussions with the Minister for Communication, Digital Technology and Innovations and are in touch with the rural FM stations and the information centres. We have also spoken to all our district directors across the country. As soon as the information is made available, the extension officers and the agricultural officers will use the local medium for communication to get this information to the farmers.

We have also asked the Minister for Communication, Digital Technology and Innovations to give us a free arrangement under which we can send messages to all the farmers wherever they are located. But now that we are doing the farmers' cooperative registration, we have the data of all the farmers and their various locations. So, as soon as we get the information, it becomes very easy for us to disseminate the information to the farmers. So, that is in place.

Mr Poku-Adusei: Thank you, Mr Speaker.

3.18.p.m.

Mr First Deputy Speaker: Yes, Minority Chief Whip.

Mr Annoh-Dompreh: Mr Speaker, on the first paragraph of my good Friend,

the Minister's answers, with your leave, it says:

“With regard to the steps in promoting climate-resilient crop varieties, the Council for Scientific and Industrial Research (CSIR) and the Ministry through its National Varietal Release and Registration Committee (NVRRC), have released climate-resilient varieties of the major staples; maize, rice, cassava...”

I am curious to find out from the Minister if it is the case that all districts in the country have received these staples, or it is the case that districts have been put into clusters and they are being dealt with as such. Because I know we have quite a number of districts in this country, and I am not sure that all the districts are being supported at a go. So, I wish he could elucidate the answer he gave.

Mr First Deputy Speaker: Yes, Hon Minister?

Mr Opoku: Mr Speaker, the development of the seed is one thing, and the purchase of the seed for distribution is another thing. The ability to purchase depends on the budget that is approved by this House. As we speak, we have distributed to many of the districts, but we have not covered all the districts. This is the first year, and we believe that the things that we have put in place next year, we should be able to cover every district in our country.

Mr Annoh-Dompreh: Mr Speaker, I am sorry, you may indulge me.

Mr First Deputy Speaker: As a Leader, I will indulge you.

Mr Annoh-Dompreh: Mr Speaker, my Friend says he has not covered all the districts. I find that quite revealing, and that is an honest answer. Would he be kind enough to tell this House the criteria for the distribution since he has not dealt with all the districts. What informed the distribution?

Mr Opoku: Mr Speaker, every decision that we take is informed by data. Now, when we get in touch with the Statistical Research and Information Directorate, (SRID) and ask of the districts that produce a lot of these crops, they have their list there. In fact, we requested and they gave us the first 50, and then upon request, they give us the additional 50. So, we decided to serve those people first before we get to the others. But one thing we have also done is that we know we have a lot of irrigation infrastructure across the country. These are facilities that allow our farmers to produce all year round. So, if we give them the input, they can do all year-round production in order to ensure food security. So, we are serving all those people regardless of their locations.

Mr First Deputy Speaker: Yes, Mr Nyindam.

That may be the last supplementary question.

Mr Matthew Nyindam: Mr Speaker, my question is on the last paragraph, where the Minister said:

“In collaboration with the Environmental Protection Authority (EPA), the Ministry is constructing dugouts in some Ghana Landscape Restoration and Small-Scale Mining Projects (GLRSSMP), beneficiary communities in northern Ghana to support livestock watering especially during the long dry season in the northern part of the country.”

Would the Minister be kind enough to share these communities or the districts with us in this House? Thank you very much and I am sure the Mr Dafeamekpor is listening.

Mr First Deputy Speaker: Yes, Hon Minister.

Mr Opoku: Mr Speaker, it is a tall list, and I want to come back to this House with the full list on all the dugouts and the small dams that we are constructing, those we are rehabilitating, and the solar-powered boreholes we are drilling to support farmers. I will bring the full list to the House, so that Hon Members will know what is happening in their constituencies. In fact, if it is about yams, I would have mentioned Mr Nyindam's constituency already, but this one is not about yams. That is why I did not mention his constituency.

Mr First Deputy Speaker: Hon Members, as a matter of fact, this should have been a substantive Question, so that

the Minister would be informed accordingly to bring the data to this particular House.

Hon Members, Question time has ended. May I use the opportunity to thank the Minister on behalf of the House for attending upon the House and responding to all the Questions scheduled for him. Hon Minister, thank you very much. You are discharged.

Mr George Kweku Ricketts-Hagan: Mr Speaker, with your indulgence, I want to seek your leave to vary the Business on today's Order Paper and move to Commencement of Public Business, that is the item numbered 8 on the Order Paper. Let us get some reports laid.

Mr First Deputy Speaker: Yes, Minority Chief Whip.

Mr Annoh-Dompreh: Mr Speaker, there should be no issues.

Mr First Deputy Speaker: Very well. We accordingly vary the order of Business. We are now at the Commencement of Public Business, item number 8, Presentation of Papers.

Mr Ricketts-Hagan: Mr Speaker, we want to take 8(b), and with your indulgence, can I seek permission for the Minister for Food and Agriculture to do so for us on behalf of the Minister?

Mr First Deputy Speaker: Yes, Minority Chief Whip.

Mr Annoh-Dompreh: Mr Speaker, we have no objection to that, except to caution the Leader that we know they are preparing for the mid-year Budget, but the Minister for Finance has not been coming, we can understand. The Deputy Minister has also not been coming. They should take a cue and transmit this information to them. If they are not coming as a result of a very good reason, we can permit them, but if they do not fulfil those reasons, we will stop them. So, on that score, maybe we will allow the Minister for Food and Agriculture—

Mr First Deputy Speaker: So, Hon Minority Chief Whip, once we know that they are not coming for a good reason, let us hold them responsible to perform the reason for which they are not coming. We then permit the Minister for Food and Agriculture to lay the Paper on behalf of the Minister for Finance.

Mr Annoh-Dompreh: Yes

Mr First Deputy Speaker: Item numbered 8(b), Minister responsible for Food and Agriculture.

PAPERS

Minister for Food and Agriculture (Mr Eric Opoku) on behalf of the Minister for Finance —

Annual Report on the Public Private Partnership Projects for the year, 2024.

Referred to the Committee on Public Administration and State Interest

Mr Ricketts-Hagan: Mr Speaker, the next one is 8(c) by the Minister for Energy and Green Transition. Mr Speaker, I want to seek your permission again for the Minister for Food and Agriculture to do the same for 8 (c), (d) and (e). These are all audit reports,

Mr Annoh-Dompreh: Mr Speaker, with respect, I know the Minister for Finance and his Deputy are engaged in other equally important businesses, and we all understand, which we do not want to elucidate. The Minister for Energy and Green Transition is there. There is a Deputy Minister. Both of them are at large. Why? Are they also engaging in matters very beneficial to this House? Then they have to give us better particulars.

Mr First Deputy Speaker: Hon Member, you know the Minister for Energy and Green Transition has always been here. He is very punctual in this House.

Mr Annoh-Dompreh: Mr Speaker, his Deputy should come and lay the Papers.

Mr First Deputy Speaker: If for today he is not here, I will touch the soft part of your heart to pardon him, and then we allow the Minister for Food and Agriculture—

Mr Annoh-Dompreh: My heart is very soft.

Mr First Deputy Speaker: Very well.

3.29 p.m.

Mr Annoh-Dompreh: I find it difficult agreeing to a situation where the Minister will not be here and his Deputy will equally not be here; it is worrying. They must respect and respond to the whip of the Majority Chief Whip. Mr Speaker, on this occasion, we will have to send a word, His Excellency the President, should fire his first reshuffle. Some of the Ministers are not respecting Parliament and those who are not—*[Interruption]*—there are Ministers, there are MPs—My Hon Member, for instance can be a Minister for Energy. The Hon Member at the far end there can also be a Deputy Minister for Energy. The President should consider his first reshuffle. If they will not respect this House.

Mr First Deputy Speaker: Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, my Brother knows that the Minister for Energy and Green Transition and his deputy, the Minister for Lands and Natural Resources, and the Minister for Local Government are regular Members of this House who attend to our Businesses. He knows that the Minister for Finance is coming here on 24th July, 2025 for the Mid-Year Budget Review. These are very critical Ministries whose inputs into the Mid-Year Budget Review are very critical and that is why they are so engaged. So I would plead with him that I am sure tomorrow or early next week, we will hear good tidings. So he should allow the Minister for Food and Agriculture to do so.

Mr First Deputy Speaker: Hon Members, the item numbered 8(c), to be taken by the Minister for Food and Agriculture on behalf of the Minister for Energy and Green Transition. Let us take

(i) to (iii) together.

By the Minister for Food and Agriculture (Mr Eric Opoku) on behalf of the Minister for Energy and Green Transition—

- (i) Annual Statement by the Audit Committee of the Volta River Authority for the Year 2024.
- (ii) Annual Statement by the Audit Committee of the Bui Power Authority for the Year 2024.
- (iii) Annual Statement by the Audit Committee of the National Petroleum Authority for the Year 2024.

Referred to the Committee on Energy.

Mr First Deputy Speaker: Yes, Hon Member?

Mr Ricketts-Hagan: Mr Speaker, item number 8(d) is the next one. Thank you.

Mr First Deputy Speaker: Any application?

Mr Ricketts-Hagan: Yes, Mr Speaker, again, if we can get the Minister

for Food and Agriculture to lay that for us as well.

Mr First Deputy Speaker: Yes, Minority Chief Whip?

Mr Annoh-Dompreh: Mr Speaker, we have no issues.

Mr First Deputy Speaker: Very well.

Minister?

By the Minister for Food and Agriculture (Mr Eric Opoku) on behalf of the Minister for Lands and Natural Resources—

Annual Statement by the Audit Committee of the Land Use and Spatial Planning Authority (LUPSA) for the Year 2024.

Referred to the Committee on Lands and Natural Resources

Mr First Deputy Speaker: Yes, Deputy Majority Leader?

Mr Ricketts-Hagan: Thank you, Mr Speaker.

Mr Speaker, let us now take item 8(e) by the Minister for Local Government, Chieftaincy and Religious Affairs and it is from (i) to (xvi). Again, by the Minister for Food and Agriculture.

Thank you.

Mr First Deputy Speaker: Yes, Minister for Food and Agriculture, you may present the item numbered 8(e).

By the Minister for Food and Agriculture (Mr Eric Opoku) on behalf of the Minister for Local Government, Chieftaincy and Religious Affairs—

- (i) Annual Statement by the Audit Committee of the Ketu North Municipal Assembly for the year 2024.
- (ii) Annual Statement by the Audit Committee of the Anloga District Assembly for the year 2024.
- (iii) Annual Statement by the Audit Committee of the Asunafo South District Assembly for the year 2024.
- (iv) Annual Statement by the Audit Committee of the North Tongu District Assembly for the year 2024.
- (v) Annual Statement by the Audit Committee of the Denkyembour District Assembly for the year 2024.
- (vi) Annual Statement by the Audit Committee of Greater Accra Coordinating Council for the year 2024.
- (vii) Annual Statement by the Audit Committee of the Adaklu District Assembly for the year 2024.
- (viii) Annual Statement by the Audit Committee of the Suhum

Municipal Assembly for the year 2024.

- (ix) Annual Statement by the Audit Committee of the Asante Akim Central Municipal Assembly for the year 2024.
- (x) Annual Statement by the Audit Committee of the Adentan Municipal Assembly for the year 2024.
- (xi) Annual Statement by the Audit Committee of the La Dade-Kotopon Municipal Assembly for the year 2024.
- (xii) Annual Statement by the Audit Committee of Upper West Akim District Assembly for the year 2024.
- (xiii) Annual Statement by the Audit Committee of the Ada East District Assembly for the year 2024.
- (xiv) Annual Statement by the Audit Committee of the Shai Osudoku District Assembly for the year 2024.
- (xv) Annual Statement by the Audit Committee of the Effutu Municipal Assembly for the year 2024.
- (xvi) Annual Statement by the Audit Committee of the Ada West District Assembly for the year 2024.

Referred to the Committee on Local Government and Rural Development.

Mr First Deputy Speaker: Yes, Deputy Majority Leader?

Mr Ricketts-Hagan: Thank you, Mr Speaker.

Mr Speaker, I would want to turn our attention to the item numbered 15 on the Order Paper. The item numbered 15, the Fisheries and Aquaculture Bill; I think we were at the Consideration Stage yesterday, that was where we truncated it.

Mr First Deputy Speaker: Very well.

Yes?

Mr Annoh-Dompreh: Mr Speaker, I think we related on the matter and the business. However, item 8(f) has been on the Order Paper for close to a month and since we are laying all these Papers, I thought it wise that I should bring it to your notice. I do not know why it is always on the Order Paper and yet we are not acting on it. What is the problem?

Mr First Deputy Speaker: Yes, Hon Minority Chief Whip, this issue was raised and I think the Majority Leader himself drew the attention of the House that there was a problem with the Bill itself which will have a consequential effect on the Report of the Committee. So that is what is holding on to the Report of the Committee and once it is programmed on the Order Paper, unless and until it is otherwise withdrawn, it will continue to be on the Order Paper.

So I hope that whatever the problem might be, they will address it in no time so that the way will be clear on whether the item should be withdrawn or we should proceed to take it.

3.38p.m.

So, let us bear with them.

Hon Members, Fisheries and Aquaculture Bill, 2025 at Consideration Stage.

BILL – CONSIDERATION STAGE

Fisheries and Aquaculture Bill, 2025

[Resumption of Consideration from 9/07/2025]

Mr First Deputy Speaker: Hon Members, yesterday, we deferred the consideration of clause 5. Chairman of the Committee, were you able to resolve issues?

Chairman of the Committee (Dr Godfred Seidu Jasaw): Yes, Mr Speaker, it turned out that it was actually a policy issue. So, I convened a meeting between the Minister and the Chief Whips and we were able to resolve it. The rendition as proposed here stays. The House may consider and adopt that.

Mr First Deputy Speaker: Hon Members, the whole of clause 5 is for the consideration of the House.

Yes, Dr Kabiru Mahama, what is your proposed amendment?

Dr Mahama: Mr Speaker, clause 5 (2) reads:

“The President shall, in accordance with Article 70 of the Constitution, appoint the chairperson and members of the Board.”

Mr Speaker, I know that this is a standard provision, but that said, the power to appoint means the power to also disappoint, and if there are—This Act creates statutory representation because if we look at clause 5, it establishes a governing board. I do not think the President should have the power to disappoint or fire such people in accordance with this particular Act. So, my proposal would have been to limit it to the Chairperson and say, “other members of the Board” subject to the clause 5—

Mr First Deputy Speaker: Hon Members, as you said, this is a standard rendition. It therefore means that it has been debated thoroughly before reaching this particular rendition. The answer to your question has been taken care of by subsequent clauses. So, I will entreat you to reach further. If you go to the “Tenure of Office of members of the Board”, particularly, clause 8(7), it talks about declaration of vacancy. So, there are provisos when it comes to declaration of vacancy which provides an answer to the concern that you are raising.

Dr Mahama: Mr Speaker, rightly so. I have taken cognisance of that provision, and that is the more reason I was talking about clause 5. Because if we

read clause 8, specifically clause 8(7), it says:

“...the Minister shall notify the President of the vacancy...”

My emphasis is:

“...the Minister shall notify the President of the vacancy and the President shall appoint a person to fill the vacancy of the unexpired term.”

Mr Speaker, that brings me to the point that those people are statutory representatives and the President, by mere notice of the Minister, cannot appoint people if those people fall within the statutory representation. That is the reason I was drawing our attention to this particular provision in clause 5. So that when we get to this particular place, we would have addressed that particular concern.

Mr First Deputy Speaker: Yes, Chairman of the Committee.

Dr Jasaw: Mr Speaker, we will prefer to go by the standard rendition which is captured now in this current rendition, and compensate his concern by clause 8(7) which discusses vacancy, the conditions for vacancy and what happens thereof.

I am not clear what mischief is seen here that the Hon Member is trying to cure. This is a standard rendition.

Mr First Deputy Speaker: Hon Members, these are what we refer to as institutional representation. Therefore, if for example, you are a Chief Executive Officer (CEO) of Ghana Maritime Authority and your appointment is terminated, then you cease to be a member of the Board. Any other person who holds that particular office becomes an automatic member of the Board. That is why in clause 8(7), the proviso is there that even where there is going to be a declaration of vacancy, that declaration of vacancy will not affect the institutional representations. So, I do not know why the issue that the President who appoints can disappoint; therefore, we should add to this particular rendition.

Dr Mahama: Mr Speaker, I do not know if I am not making my point clear, and let me labour to try to make it a bit clearer. The point I am making is that this Act says that the President shall be given the right to appoint the Board Chairman and other members of the Board. And, this is in line as admitted with standard practices. But I am saying that, in this particular Act, there are institutional representation. In fact, the Act says, not just the CEO, but the CEO can nominate someone who is at the rank of a director to be on the Board. So, the fact that the CEO is fired does not necessarily mean that the representation ceases to operate because by its nature, if a CEO appoints that line manager to represent—

Mr First Deputy Speaker: Hon Member, at this particular provision, we are talking about appointment, not termination. So, you can hold your brief,

and when we come to termination, you can raise that particular point. But here, the rendition says:

“...the President shall, in accordance with Article 70...”
Now, open your Constitution.

What does Article 70 say?

“The President shall, in accordance with Article 70 of the Constitution, appoint the chairperson and members of the Board.”

We are clearly talking about appointment here; there is nothing about termination. The issue that you are raising is about termination. So, how does it relate to the rendition?

Dr Mahama: Mr Speaker, with a bit of patience, I will urge you—

Mr First Deputy Speaker: We understood the point that you are making, except that—

Dr Mahama: Mr Speaker, you drew my attention to the termination. I was raising the issue about appointment. Then you drew my attention to the termination, and that was where I came to the termination. I did not start—I do not have an issue with the termination. My point—

Mr First Deputy Speaker: So, what point are you raising on this standard provision?

Dr Mahama: Mr Speaker, I was proposing that, if it is possible, once it is a proposal and the amendment is not so accepted, I think the House will indulge me to make—

Mr First Deputy Speaker: So, Hon Member, you are a first-timer. Normally, what we do is that you propose amendments. And let me put a Question on your amendment.

Alhaji Habib Iddrisu: Mr Speaker, like the Hon Member said, I think he was referring to clause 5(1) which we started yesterday when the Hon Majority Chief Whip was proposing that even the National Premix Fuel Secretariat should be included in the Board. So, his argument here is that if we go to clause 5

(1), it says:

“The governing body of the Commission is a Board consisting of...”

Then, they mention representatives from clause 5(d)(i) which includes; the Ghana Maritime Authority, the Ghana Police Service, the Ghana Navy, among others. So, he is of the opinion that, “the members of the Board” mentioned in clause 5(2)—So, his argument is to the effect that if they are having institutional representatives, is the President still appointing the institutional representatives or the institution is bringing them.

3.48 p.m.

And even if it is the case that, under clause 5(1) where the President appoints the Chairman and clause 5(1)(b) if the appointment of the Executive Director is

terminated, who now stands as the institutional representative since in clause 5(2), the President has to appoint everybody on the Board? Even clause 5(1) also gives the Minister the opportunity to nominate somebody to the Board; then clause 5(2) is also saying that the President shall appoint—*[Interruption]*—So, the point is that, is the President appointing everybody? That is what he is trying to cure, so let him make his proposed amendment; if it is rejected, we will know. But can the Chairman, maybe, throw more light on that so that we get to understand the whole thing?

Mr First Deputy Speaker: Hon Members, I have the view that if the thing is not torn, you do not make an attempt to patch it. He started by saying this is a standard provision. The provision is dealing with appointments. If a person has a right to nominate, after nomination, practically, what happens?

All the people nominated are appointed and we are dealing with appointments; we are not dealing with termination. The President will have to do the appointment in line with Article 70(1) of the Constitution. So, Hon Member, what is Article 70 of the Constitution saying?

Hon Members, on the hindsight, let me read:

1. The President shall, acting in consultation with the Council of State, appoint –

- (a) the Commissioner for Human Rights and Administrative Justice and Deputies;

- (b) the Auditor-General;
- (c) the District Assemblies
Common Fund
Administrator;
- (d) the Chairmen and other
members of –
 - i. the Public Services
Commission;
 - ii. the Lands
Commission;
 - iii. the governing bodies
of public corporations;
 - iv. a National Council of
Higher Education
howsoever described;
and
- (e) the holders of such other
offices as may be
prescribed by this
Constitution or by any
other law not inconsistent
with the Constitution.

2. The President shall, acting on the advice of the Council of State, appoint the Chairman, Deputy Chairmen, and other members of the Electoral Commission.

So, the power to appoint is given to the President. The law is saying that after all these people are nominated, then they will be appointed by the President in line with Article 70 of the Constitution. So,

what is the issue that you are raising? That is why we are having a difficulty.

Dr Mahama: Mr Speaker, I am sorry if this proposal I am trying to make is creating confusion and I have to put that on record. I do not have any issue as to the power of the President to appoint in consonance with Article 70. The Bill provides, under clause 5, for people to be nominated, rightly so, for the President to appoint. There is no ambiguity whatsoever with that. The issue that I am seeing is that, yesterday, taking a cue from what you said that the abundance of such clarity to the law is actually what I was preaching here.

My proposed amendment was to the effect that it was subject to the nominations specified under clause 5; that was the proposal. Even though I admitted that it is a standard provision, a mischievous President may decide that he has the power to appoint and the power to dis-appoint, so whoever comes to the Board, he can fire and appoint, irrespective of this provision. So, that was the point—

Mr First Deputy Speaker: That is why I am telling you that this provision is not dealing with the power to terminate; this provision has nothing to do with that. So, for you introducing power to terminate, you are not getting the provision clear. If you read the constitutional provision in Article 70, it talks purely about appointment but not about termination. Do you get the point?

Alhaji Habib Iddrisu: Mr Speaker, I think we are properly guided and the Hon

Member will withdraw this amendment and then we will continue.

Dr Mahama: Thank you very much, Mr Speaker.

Mr Speaker, I just rise to withdraw my proposed amendment.

Mr First Deputy Speaker: There is no proposal on the floor.

Dr Mahama: Mr Speaker, the point —

Mr First Deputy Speaker: That is why I am of the view that, at the Consideration Stage, we do not engage in an argument. When you get up, your ability is to propose an amendment to a rendition. So, when you get up, then you say, “Mr Speaker, I propose that delete this and insert this”; then I will say “It is for the consideration of the House”. Do you understand? But the argument that the President has the power to appoint and can — No, that is not what happens at the Consideration Stage.

Dr Mahama: Thank you, Mr Speaker, I am guided.

Clause 5 ordered to stand part of the Bill.

Clause 6 — Functions of the Board.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, your Committee has no proposed amendment.

Mr First Deputy Speaker: However, it is for the consideration of the House. In the absence of any amendment to clause 6 —

Yes, Hon Member?

Prof Kingsley Nyarko: Mr Speaker, with respect, I would like to propose an amendment to *insert* clause 6(d), that the Board — I mean, clause 6, that:

“The Board may perform any other functions as determined by the Minister.”

I said clause 6(d). I am saying that I want to propose an amendment to insert clause (6)(d) that:

“The Board may perform any other functions as the Minister may determine.”

I so submit, Mr Speaker.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

We also need to take into consideration whether a Minister determines functions of the Board or it is the law that determines the functions of the Board.

Dr Jasaw: Mr Speaker, it is the law that determines the functions of the Board. Looking at clause 6(a), (b) and (c), it covers enough of what is expected of the functions of the Board. So, I submit that this current rendition of clause 6 stays.

Prof Nyarko: Mr Speaker, I have been observing law-making here and some of the laws we passed have what I am proposing. If we look at the Education Regulatory Bodies Act, 2020 (Act 103), that was provided to most of the boards to agencies. That is why I am bringing this to you.

Mr First Deputy Speaker: No, I was so instrumental in processing that particular Act and you know it. That Act, more or less, establishes committees; and functions of the committees can be determined by the Minister. But for this one, we are talking of the Board and the Board is the *alter ego* of the institution. So, there is a clear — I know you are talking about omnibus clauses; Is that not so?

Prof Nyarko: Mr Speaker, I yield. Let us make progress.

Clause 6 ordered to stand part of the Bill.

Clause 7 — Duties and liabilities of a member of the Board.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, your Committee has no proposed amendments; however, it is for the consideration of the House.

Mr First Deputy Speaker: Hon Members, the Committee has no proposed amendments, but it is for the consideration of the House. Any proposed amendments?

Yes, Hon Kabiru?

3.58 p.m.

Dr Mahama: Mr Speaker, I have read through the duties and I was proposing to add a clause 7(f). If you are so minded, I would like to read what I was proposing to add to that. Clause 7(2)(f) would read:

“avoid leaking sensitive information to parties in a manner detrimental to the commission.”

I tried to read through to see which of the current provision has that or tried to capture the spirit of the point I wanted to make, but I laboured to see it.

I was proposing that we have clause 7(f), that would seek to avoid board members leaking information to parties because of their privileged position in a way that is detrimental to the interest of the Commission.

Mr First Deputy Speaker: So, which clause are you making the proposal to?

Dr Mahama: Mr Speaker, clause 7(2)(f) and my rendition is “avoid leaking sensitive information to parties in a manner detrimental to the Commission”.

Mr First Deputy Speaker: So, Hon Member, let me couch the amendment for you. So, amendment proposed, clause 7, sub-clause (2), additional new paragraph to clause 7(2)(d), then your proposal will come, “avoid leaking sensitive information”.

So, Hon Member, look at clause 7(2)(d) and if I may read:

“... avoid making improper use of information acquired by virtue of the position of that member so as to benefit that member or to the detriment of the Commission;”

Then (e). So, if we are going to “avoid improper use of information”, must we add another clause to say “avoid leaking sensitive information”?

Dr Mahama: Mr Chairman, if the import is the same, then I withdraw my proposal, but I did not get that and that is the reason—*[Interruption]*—Can we be patient, at least? *[Pause]*

Mr Speaker, the issue, as you explained, if the (d) covers the import of that particular provision, I am well guided. I am not interested in adding to that.

Mr First Deputy Speaker: I am not imposing anything on you. You see, as for Bill processing, you need to take your time and get to the rudiment of the game. If a provision is at stake, you must first of all read the provision as a whole. It is then that you can determine the adequacy or inadequacy of the provision. So, I am just advising that we hasten slowly in these matters.

For me, if I am supposed to take part in the debate, what I will say is that “avoid making improper use of information” is even better than the adjective “critical” information because who determines whether the information

is critical or not? Therefore, “avoid the use of information” takes care of the concern that you have raised.

Yes, Alhaji Collins Dauda?

Alhaji Collins Dauda: Mr Speaker, my Colleague addressed you as “Mr Chairman”. The Speaker is always a Speaker. The Speaker can never be transformed into a Chairman. I thought that I should draw his attention to it for him to make the necessary correction. The Speaker must be addressed properly.

Thank you very much.

Mr First Deputy Speaker: Thank you. Please, take note.

Alhaji Habib Iddrisu: Mr Speaker, at the Consideration Stage, our Rules are many a time relaxed and that is why we see the mace being tilted, so the he should understand.

Dr Mahama —*rose*—

Mr First Deputy Speaker: Dr Kabiru, please, resume your seat unless you want to do a proposed amendment to clause 7. Do you have a proposed amendment to clause 7 or you still want to carry your amendment? *[Pause]*

Are you abandoning your proposed amendment? The proposed amendment is accordingly abandoned.

Question put and amendment agreed to.

Clause 7 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, before taking clause 8, let me do additional acknowledgement. Students from the Advent Reformed Institution are here to visit us. They are led by Mawutor Joseph, the Headmaster, and they are from Achiase. They are 168 in number. You are welcome and may you have a fruitful visit to the Parliament of the Republic of Ghana. Thank you for coming.

[Students of the Advent Reformed Institution were acknowledged.]

Clause 8 – Tenure of office of members of the Board

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, your Committee has no proposed amendment; however, it is for the consideration of the House.

Mr First Deputy Speaker: Hon Members, the Committee has no proposed amendment. It is for the consideration of the House. Any proposed amendments?

Yes, Dr Kabiru Mahama?

Dr Mahma: Mr Speaker, I beg to propose that clause 8, sub-clause (7), *insert* paragraph (e) to read:

“The Minister shall notify the President of the vacancy and the

President shall appoint a person to fill the vacancy for the unexpired term without prejudice to section 5 of the Act”

The addition is to *insert* “...without prejudice to Section 5 of the Act”.

Mr Speaker, the reason I am making this proposal is to cure any mischief that probably will vest the power to appoint and terminate at random by the President, which is not in consonance with the provision of this Act. Mr Speaker, you recall our previous discussion we just had about clause 5.

Mr Dafeamekpor: Mr Speaker, I see the point Kabiru is making, but he is misreading the provision. Clause 8(7) is very clear. Clause 8(7) begins this way, “where there is a vacancy, (a), (b), (c)” the continuation of (c) is that “the Minister shall...”. So, “the Minister shall...” is actually a continuation of sub-clause (7). So, clause 8(5) is a standalone. Mr Speaker, there is no mischief created by the provision at all.

Dr Mahama: Mr Speaker, I understand what my respected Leader said, but the point I am making is different. Mr Speaker, I do not know whether I am the only one thinking that way or I am thinking weird and I will concede if my thoughts are weird, but where the President has the power to appoint a person and to dis-appoint a person, the limit of that power will sometimes have to be defined. The problem I have with the current rendition is that they said the Hon Minister will notify the President to appoint. It ends at

that. Once it ends at that, any President, even if we do not tie the hands of the President, an institution can nominate someone and the President will say, I have the power to appoint, so I will not appoint the person—*[Interruption]*—Please, can I make my point?

4.08 p.m.

Mr First Deputy Speaker: Order! Order!

Hon Members, I will advise again that the legislative process is very technical, you must take your time.

Yes, Hon Nitiwul?

Mr Dominic Bingab Aduna Nitiwul: I will support the Chairman of the Committee. Mr Speaker, the Executive is the President and all others are acting to support him. That power to appoint rests on only one person, and that is the President. That is why the Minister cannot appoint, but the Minister can recommend to the President. So once the Minister makes a recommendation, the President is not bound to accept that recommendation. The President can decide that he is looking for somebody else, and appoint that person. In the point that is being made that the President shall appoint, I am not sure that the meaning is that the President should appoint that person. I am not sure that is what is captured here. But once you notify a President that there is vacancy, the rule is that you can nominate. Sometimes you may not even nominate, but the President will fill that vacancy.

It is important for the Minister to notify the President that there is a vacancy, because the President will not know. So, Mr Speaker, the power rests with the Executive, and by the Constitution, it is the President who has that Executive power. The rest are assisting, so if you look at most of the Acts that we have passed, they are captured in a similar language like this. That is why I will not challenge the thing. It is mostly captured like this and we have never had a problem where somebody thinks that he has made recommendation to the President, so the President must do what he wants. It is not possible. I do not know how we are going to — it is not possible. So, I think that when they say that the Minister shall, which is correct, the Minister has to do it and they say that the President shall appoint a person to fill the vacancy for the unexpired term. So, the President shall appoint a person and I do not think we should fight over this. It is the correct language, Mr Speaker.

Mr First Deputy Speaker: Hon Members, there is nothing wrong with clause 8(7). It is a standard rendition and you cannot read clause 8(7) without making reference to subclauses 3 and 4, because subclauses 3 and 4 are conditions based on which clause 7 will be invoked. So, if you read it in consonance with 3 and 4, you would realise that in most of the Bills that we have passed in this House, some of the provisions here are standard provisions that the House has debated upon and agreed to. So, unless you have exceptional reason.

Mr Nitiwul: I want to draw your attention to something. The Member is saying that there are institutional representations here. So, for example, if somebody from the Fisheries Commission or Maritime Authority for some reason resigns or passes on or something happens and the President decides to appoint, he is trying to make a point that the Act should be captured in such a way that the President will have to appoint somebody from the same institution. That is what he is trying to say because with that — do not say no, because what he is trying to say is that if the President does not appoint somebody from that institution, it will mean that the President will be going against the Act. That is the point he is trying to make. But we will look at it.

Mr First Deputy Speaker: Hon former Minister for Defence, with all due respect, if you are a member of a Committee as a result of you being a Minister for Defence, if today you are no longer a Minister for Defence, there is a vacancy, is that not so? So, the Minister will notify the President. And once it is institutional representation, whoever is the Minister responsible for Defence would then be appointed to now assume the position. That is how it is done. So, it does not create—once it is institutional representation, there is nothing you can do about it because if they say a Chief Executive of an institution, whoever is the Chief Executive, you may not even resign. Let us say if your appointment is terminated as the Chief Executive of Maritime Authority, by virtue of that termination at that institution, a different person is coming to occupy and because

you are there by virtue of being the Chief Executive of Maritime Authority, once you are no longer the Chief Executive of Maritime Authority, a new person who comes based on the information from the Minister to the President would then be appointed to fill the vacancy. So that is how it is done.

Mr Nitiwul: Mr Speaker, I want to crave your indulgence. You are a lawyer and a very important one of course. The Supreme Court sometimes goes back to Parliament to pick the debates to guide them on what informed Parliament to make the law. He is raising something, so I will plead that you listen to him and hear what he says.

Mr First Deputy Speaker: I will listen to him.

Nana Adjei Baffour Awuah: Mr Speaker, thank you very much. Mr Speaker, I appreciate all that you have stated. But Mr Speaker will appreciate the point that interpretation of the Bill, once it becomes an Act, does not lie with us. It lies with the Court, so respectfully, you sitting there looking at it from the perspective of a reasonable man, are likely to look at it within the context that this is something that is very simple and that everybody should understand it.

But Mr Speaker, Clause 5 speaks to the Constitution of the Board. Clause 8 is only speaking to the situation of a vacancy, so Mr Speaker, it does not spoil anything. If in drafting Clause 8 subclause 7(c), we say subject to Clause 8, so that for precision and specificity purposes, whoever takes this Act will

know that the power to appoint to fill a vacancy by the President is subject to Clause 5.

Then when you go to Clause 5, Mr Speaker, all the things that you have stated are now then catered for so that there is no dispute on the ground. There is always dispute on the ground. Mr Speaker, respectfully, I have witnessed a situation where, for instance, there is a contest as to whether the power of the President to appoint from an institution means that it is the institution that is appointing for the President or the — no, it is not even nomination, in their minds — *[Interruption]* — wait, I am highlighting problems on the ground; practical problems I have witnessed, so Mr Speaker, very respectfully, I know that you are a master when it comes to drafting. Mr Speaker, subject to proper drafting language, which you have vast experience more than I do, I think that if it does not hurt drafting, nothing stops us from saying that “subject to clause 5...”.

4.18 p.m.

Mr First Deputy Speaker: You see, Hon Members, there is a cardinal rule in drafting and that rule is a rule of consistency.

Hon Members, in drafting, consistency is very key. Now, if in all the laws that we have passed, this is the rendition. It has not been subject to. Immediately, you are doing this one otherwise. It means you want this to be interpreted in a way different from the other laws that we have passed. That is why, unless you have a compelling

reason, you do not depart from consistent rules.

Because if you look at the laws passed, let us say from 2020 to 2025, you realise that these provisions are standard so, you must have a compelling reason for which Parliament should deviate from its standard to do something otherwise, because once that happens, it gives a different room for interpretation.

Now, the provision that we are considering for amendments is clause 8(7). And what is the law saying?

“Where there is a vacancy under subsection 3...”

What does 8(3) say? It said:

“A member of the Board may at any time resign from office...”.

So, it means that the vacancy is created as a result of resignation”. That is one. Then, subclause 4, says,

“A member of the Board who is absent from three consecutive meetings without sufficient cause ceases to be a member of the Board”.

Now, that is what the (a) is talking about. That is why it says that where there is a vacancy as a result of resignation, as a result of absenting yourself for more than the required period, then there is a vacancy. Then, when that vacancy occurs, the Minister will have to notify the appointing authority. And consequently, the

appointing authority would then appoint to fill the vacancy.

Now, (b) is saying that as a result of the declaration under subclause (6), what does subclause (6) say?

“Where a member of the Board is, for sufficient reason, unable to act as a member, the Minister shall determine whether the inability would result in a declaration of vacancy”.

So, when such a thing happens, then the Minister is to notify the appointing authority.

Then, (c), “by reason of death...”, when a person appointed to serve on the board dies, the Minister would inform the President. And the rendition is saying that when all these things happen, the Minister shall notify the President of the vacancy. And the President shall appoint a person to fill the vacancy for the unexpired term. So why are you saying we should subject this particular provision to clause 5?

Mr Awuah: Mr Speaker, very respectfully, we are looking at how to draft this to make the interpretation of it easier for everybody. Very respectfully, with all the analysis that you have done, we are supposed to assume that on the basis that the President has the power to appoint under clause 5, in appointing, he is likely to appoint from the very institution whose representative he has—I am saying, so assume from the Speaker’s analysis, he is bound to.

But I am saying that, Mr Speaker, for specificity and precision, very respectfully, it does not hurt if we are to make that provision. That said, Mr Speaker, I defer to you on this. But it is my humble view that you made reference that because of the way we have drafted in the past, it is the standard. And it can create confusion in interpretation.

Mr First Deputy Speaker: No, you are getting me wrong. I said that when you try to depart from the standard, then the judges in interpreting it will look at this particular law, and other laws that have been passed. That if the immediately preceding Bill, this is how Parliament passes. However, in this Bill, Parliament is doing anything different, do we put the meaning that we place on it in the law preceding, or should we depart from the meaning?

So that is what will create the ambiguity in the minds of those who are supposed to interpret the law. Because it is the same Parliament that is making the law. So, unless there are compelling reasons, you do not depart.

Mr Awuah: Mr Speaker, I have very respectfully highlighted to you emerging practical problems. As we speak.

Mr First Deputy Speaker: Well, Hon Members, we cannot be arguing one clause forever. So, I intend to put a Question.

Clause 8 to 14 ordered to stand part of the Bill.

Mr First Deputy Speaker: Clause 15. Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendments for this.

Mr First Deputy Speaker: It is, however, for the consideration of the House. Yes, Hon Dafeamekpor?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, the term ‘rules and procedures’ has assumed...

4.28 p.m.

Mr Speaker, the term “rules and procedure” has assumed a term of act, so I propose that after “the”, we add “rules and procedures”. So that it reads:

“The Board shall, acting on the advice of the Executive Director, by guidelines, prescribe the rules and procedures, powers, and related matters of co-management committees established under section 13.”

Thank you.

Mr First Deputy Speaker: Hon Member, we want to be with you. You said the terminology is “rules and procedures.”

Mr Dafeamekpor: Mr Speaker, my proposal is that the phrase should read:

“The Board shall, acting on the advice of the Executive Director, by guidelines, prescribe the rules and

procedures, powers, and related matters of co-management committees established under section 13.”

Mr Speaker, the intendment here is that the co-management committees are committees that will be handling matters of disputes. So, the intendment of the House is to allow the Board to fashion a guideline by way of how the committee will conduct its affairs, procedure, rules and how matters generally —

Mr First Deputy Speaker: Hon Member, if we are talking about rules, then we are invoking Article 11(7), but this one is merely the procedure by which the management committee is going to operate. Once you introduce an element of rules, then you are invoking Article 11(7).

Mr Dafeamekpor: Mr Speaker, not at all. The headnote reads, “Procedures of co-management committees.” So, it is very clear.

Mr First Deputy Speaker: Yes.

Mr Dafeamekpor: Now, if the Board is by guidelines, which in this sense will mean like, regulations, “The Board will, by regulations, guidelines, provide procedure...” and I am saying that the “procedure” should be —

Mr First Deputy Speaker: Hon Member, once it is rules, we are delving into an arena of regulation.

Mr Dafeamekpor: Mr Speaker, the guideline —

Mr First Deputy Speaker: For instance, the rules that govern this House. But this one, for that “rules” to have equal force and effect as laws passed by Parliament, it must be laid in this House in line with Article 11(7). This one is just talking about guideline. We are using guideline. We are delving into administrative procedures, administrative guideline. Then you prescribe a procedure based on which something is going to be done. Our court rules normally come to Parliament here. So, we need to be careful using the language “rules”.

Mr Dafeamekpor: I believe Mr Speaker is extending the meaning placed under the “rules and procedure” here. The framers are saying that “The board shall by guidelines...” Now, the guidelines will give the committee some indications as to how to handle matters that come before it. Now, they will provide the roadmap that, for instance, if a complaint is filed, it must take 10 days before another can respond. When another responds, it must take maybe five days before another can. So, it is generally what is being intended.

Now, the procedure in fashioning this procedure that the Board is intending here — And my view is that “rules” should be attached to the “rules and procedure.” But it is not “rules” as intended in Article 11(7) as Mr Speaker is insinuating. This is simply guidelines. What we are doing here is a derivative of the regulations. If Mr Speaker remembers, under the Cyber Security Act, we mandated the Minister to come by regulations and after coming by

regulations, the Board to have power to give guidelines and the guidelines have force of law. If one breaches it, the person is liable. We cannot say that this House will give the Minister the power to make regulations and the Board will have power to make guidelines, and the guidelines can be breached.

Mr First Deputy Speaker: Well, this one is by the use of terminology. Would you mind if I defer it to the drafters?

Mr Dafeamekpor: No, I will abandon it but it should be for the record. I will abandon it.

Question put and amendment agreed to.

Clause 15 as amended ordered to stand part of the Bill

Clause 16 — Allowances

Clause 16 ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, please, I may want to hear you on the vote.

Clause 17 — Ministerial directives.

Mr Vincent Ekow Assafuah: Mr Speaker, I rise to propose that the “s” in “directives” be put into a bracket so that it can suffice for both a singular form and a plural form.

Mr First Deputy Speaker: Yes, any other proposed amendments? Yes?

Mr Isaac Boamah-Nyarko: Mr Speaker, I rise to propose that the rendition should be,

“The Minister may give directives in writing to the Commission on matters of policy...”

Mr Speaker, I am saying this because directives of the Minister on such matters is important to be in writing, so we could include that in writing. I so submit. Thank you.

Mr Dafeamekpor: Mr Speaker, I support the proposed amendment.

Mr First Deputy Speaker: Any further amendments? Hon Members, is it policy directives or ministerial directives? The question is whether the headnote should be ministerial directives or policy directives. Hon Members, the laws that we have consistently passed say, “policy directives”. —[Pause] Hon Member, your proposal is that

“The Minister may give directives in writing to the Commission on matters of policy and the Commission shall comply.”

So, the proposal is after “directives”, *insert* “in writing”.

Question put and amendment agreed to.

Clause 17 as amended ordered to stand part of the Bill.

Yes, Mr Rockson-Nelson Dafeamekpor, you have the floor.

Hon Members, whose microphone is on?

4.38p.m.

Mr Dafeamekpor: Mr Speaker, the headnote, in consonance with our drafting style in drafting headnotes of provisions of this nature, should read, “policy directives”. The drafters can quickly compare with some of the recent legislations that we passed and we can make progress.

So, Mr Speaker, I propose that, under the headnotes, *delete* “ministerial” and *insert* “policy”. So, that it reads as “policy directives”.

I so propose.

Mr First Deputy Speaker: Hon Members, you may cross-check, but I recall this has been argued. It is not the Minister, *per se*, who is giving the directives, but he is just carrying the policy to the institution. That is why it is a policy directive but carried by the Minister.

So, the rendition says:

“The Minister may give directives.”

Sometimes, the rendition will say:

“The Minister may give directives on matters of policy to the

institution and the institution may comply.”

So, on this note, I may want to direct the drafters to tidy it up and also take into consideration whether directives should be plural or singular, in view of what happened yesterday. We draft in singular, but when they choose to be plural, then they must be consistent throughout.

Clause 17 as amended ordered to stand part of the Bill.

Clauses 18 to 20 is ordered to stand part of the Bill.

Clause 21 — Functions of the Executive Director

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House.

Yes, Prof Kingsley Nyarko?

Prof Nyarko: Mr Speaker, clause 21(1)(a), I propose that, after “administration”, *delete* “affairs of”. So, that we have:

“(a) is responsible for the day-to-day administration of the Commission;”

Mr Speaker, my position is that administration is the running of a

business activity and I have checked from some of the laws we have passed; for example, if you look at the Education Regulatory Bodies Act, 2020 (Act 1023), functions of the Director-General, Section 14(1)(a) reads:

“...is responsible for day-to-day administration of the Commission;”

So, I think that if “of affairs” is taken out, if we have “is responsible for the day-to-day administration of the Commission”, that is a bit better.

Mr First Deputy Speaker: Hon Members, it is for your consideration.

Yes, Hon Rockson-Nelson?

Mr Dafeamekpor: Mr Speaker, for the sake of consistency, he has made a good case, so I support the amendment.

Mr First Deputy Speaker: Very well.

Yes, Hon member?

Mr Boamah-Nyarko: How can I disagree? I am making another proposal.

Mr First Deputy Speaker: No.

Hon Members, we do not do it like that.

Hon Members, I will put the question. The proposal by Prof Kingsley Nyarko is to *delete* “of affairs” and then the new rendition will be:

“The Executive Director is responsible for the day-to-day administration of the Commission”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Hon Member?

Mr Isaac Boamah-Nyarko: Mr Speaker, I beg to move, clause 21(1), *insert* a new sub-clause to read:

“The Executive Director is responsible for the direction and supervision of the employees”.

Mr First Deputy Speaker: So, we need to satisfy ourselves as to whether the direction to the employees, who will be working on a daily basis, should be part of the day-to-day administration or separate from the day-to-day administration.

Mr Boamah-Nyarko: Mr Speaker, I am making this proposal because when it comes to day-to-day administration, it, of course, refers generally to the finances and everything, but, specifically, when it comes to matters of supervision and direction, it has become one of the new areas where executive officers or directors of institutions are directed to administer, so that they have that kind of responsibility. In case of any other matter, they could be held responsible.

That is my proposal.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, I respectfully disagree with my Colleague.

I think that that is found in “(a) responsible for the day-to-day administration of the Commission”.

Mr First Deputy Speaker: Yes, Hon Kingsley Nyarko?

Prof Nyarko: Mr Speaker, as much as this is a good observation, it is captured in 21(1)(a).

Again, if you look at the laws we passed here, this is a standard rendition and they all capture what is captured here and what the Hon Member said finds expression in the 21(1)(a).

Mr First Deputy Speaker: Yes, Hon Shaibu?

Mr Mahama: Mr Speaker, I could not agree more with my Colleagues on this and even if it is not implied, any other thing can be found in the omnibus clause of (d) which says:

“...shall perform any other function determined by the Board”.

Mr First Deputy Speaker: Yes, Hon Member, do you still insist on your amendment?

Mr Boamah-Nyarko: Mr Speaker—*[Interruption]*—You wanted to—

Mr Dafeamekpor: Mr Speaker, to provide a further guide, matters of discipline are inherent in the Board—In the administration, the Board will have a subcommittee to handle disciplinary matters. Administrative is very broad, so there is no need for us to be very specific in terms of providing for it, so we should leave it in the general provision in 21(1)(a).

Mr First Deputy Speaker: Very well.

4.48 p.m.

Mr Boamah-Nyarko: All right, Mr Speaker.

Mr Speaker, although I still believe it is relevant, subject to this guidance, I will withdraw the proposed amendment.

Mr First Deputy Speaker: Very well, amendment abandoned.

So, Hon Members, the omnibus clause that we have been talking about, that it should be under the Board, is rightly captured here: “shall perform any other function determined by the Board”. This is where it should be captured, because the Executive Director will have to take instructions from the Board, which is the *alter ego*.

Dr Mahama: Mr Speaker, I beg to propose that under clause 21(2), *delete* “in writing” so that it reads,

“The Executive Director may delegate a function to an officer of the Commission but is not relieved from the ultimate responsibility for

the performance of the delegated function.”

Mr Speaker, I make this point because the functions of Executive Directors sometimes come in the form of memoranda that are referred to them, then they will direct them to line officers to act on. If that direction on the memorandum constitutes direction in writing, then, probably, I am tempted to yield. Otherwise, the function of an Executive Director to delegate certain functions, which has to be in writing that he is delegating someone to do, might be onerous.

Mr First Deputy Speaker: So, the memorandum that you referred to, is it oral?

Dr Mahama: Mr Speaker, when I say memorandum, for instance, an Executive Director may have a communication coming from Parliament, then he will minute on it to a particular officer.

Mr First Deputy Speaker: So, is that minute going to be in writing or done orally?

Dr Mahama: Mr Speaker, that minute is in writing, but I will give you another scenario where the board takes a decision that we should compile—*[Interruption]*—Kindly let me finish my point, then you can come in, please.

Mr First Deputy Speaker: Hon Dafeamekpor, he has the floor, so allow him. I will give you the floor thereafter.

Hon Member, be brief.

Dr Mahama: Mr Speaker, we have situations where boards meet and agree that they need a report on ABC, then the Executive Director tells the assistant to prepare the report. In that case, the Executive Director has delegated someone to do it, but that does not usually come in the form of written memorandum to the line officer to prepare that report. Inherent in this particular provision, it says that he is not relieved of the ultimate responsibility, and I think that should suffice in itself than to add “in writing”. Otherwise, it would be too onerous for Executive Directors to perform.

Mr First Deputy Speaker: Yes, Hon Shaibu Mahama?

Mr Shaibu Mahama: Mr Speaker, let me disagree with my younger Brother. Mr Speaker, the clause goes further to say that, “but is not relieved from the ultimate responsibility”. So, if a person makes a phone call and gives instructions, how does he take ultimate responsibility? The reason it should be “in writing” is that ultimately, the Executive Director will be responsible and there must be a trace of instructions or delegated responsibility given to the person; that is why it is here.

In any case, Mr Speaker, a while ago, we just *inserted* “in writing with a policy”, so we should be consistent.

Mr First Deputy Speaker: Hon Mahama, when we talk about delegation of a function, it means that it is my responsibility to preside over the House. I am, however, not going to preside over

the House and the law is permitting me to ask you, Dr Kabiru Mahama, to do that on my behalf and whatever you have done, I own the responsibility for it. That is different from an institution where an accountant is to prepare a report and the Executive Director calls on that particular accountant to prepare the report and bring it for him to send to the board. That is a different thing altogether.

It relates to a function that a person has to perform. That instead of the person performing that function, he asks another person to do that particular function instead of himself. That is what the law says, the only way that can happen is when it is in writing.

Dr Mahama: Mr Speaker, in my little learning, the principle of *delegatus non potest delegare* comes in handy and I am aware of this. The only point I was trying to simplify was, it is too onerous sometimes that the Executive Director has to put everything in writing, but I yield to the decision.

Mr First Deputy Speaker: So, because of the principle that you have stated, which literally means, a delegated power, cannot further be delegated, if I tell you by word of mouth and you also ask somebody by word of mouth to do it, how can we determine that what you are telling me to do by word of mouth is a delegated function for which reason I am not supposed to perform it. That is the more reason for which it must be in writing.

Yes, Hon Nitiwul?

Mr Nitiwul: Mr Speaker, I think the writing is very important, especially when they are qualifying to say that the ultimate responsibility is on the person doing the delegation. Because one cannot orally delegate someone; then tomorrow, he says you did it and you say you did not do it. How are we going to know that? But the words that are important are the “may in writing” and “the function” because one is delegating a function to an officer to do on his behalf. The best thing is to write.

So, the way it is captured is much better because, as you said—I was just having a chat with my Colleague and it is clear. As for the delegation, it is the Executive Director’s duty to decide whether he wants to delegate somebody or not; it is not by force. So, when he decides to delegate a function to somebody to do, he should do it in writing. But he must remember that when he does it in writing, tomorrow, the ultimate responsibility is on him. It is as simple as that. I think it is good.

Mr First Deputy Speaker: So, Hon Member, will you abandon the proposed amendment?

Dr Mahama: Mr Speaker, I yield. I think we can continue.

Mr First Deputy Speaker: Very well.

Mr Baffour Awuah: Mr Speaker, I have a problem with the principle of clause 21(2). My problem is that we ought to avoid confusion in organisations. In my humble view, it is all right for the Executive Director to

delegate his powers to somebody, but to delegate the functions of other officers, I think, is problematic. Mr Speaker, if we have a chief executive who is used to usurping the powers of others, he can potentially render other officers redundant.

Mr First Deputy Speaker: But, Hon Member, what is in this provision that suggests that the chief executive can delegate functions of others other than his own function?

Mr Baffour Awuah: Then we have to look at the wording again; “A function”.

Mr First Deputy Speaker: Hon Member, there is a general principle that in arriving at the meaning of a provision, the marginal note is a guide. And if you look at the marginal note, it talks about “functions of Executive Director”. Very well.

Question put and amendment agreed to.

Clause 21 as amended ordered to stand part of the Bill.

Clause 22 — Appointment of Deputy Executive Directors.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Hon Members, it is for the consideration of the House.

Yes, Hon Kingsley Nyarko?

4.58 p.m.

Prof Nyarko: Mr Speaker, I beg to move that clause 22 (2), second line, *delete* “a” and *insert* “the”. Then after “Technical”, we *insert* “services and general services”. I say this because if we look at clause 22 (1), it says:

“The President shall, in accordance with article 195 of the Constitution, appoint two Deputy Executive Directors for the Commission, one for Technical Services and the other for General Services.”

But when we come to clause 22 (2), it ends at “Technical”, “services” is missing. At least, from what I am holding, it ends at “Technical.”, but it should be “Technical Services and General Services” to conform with clause 22 (1). That is why I am proposing that we *delete* the “a” before “Deputy” and *insert* “Services and General Services” after “Technical”. I so submit. Thank you.

Mr First Deputy Speaker: Prof Nyarko, you have to take it from clause 22(1), which reads:

“The President shall, in accordance with Article 195 of the Constitution, appoint two Deputy Executive Directors for the Commission, one for Technical Services and the other for General Services”.

So, the one for Technical Services will be a Deputy Executive Director,

Technical. And the one for General Services will be the Deputy Executive Director, General. Or you want the “Services” to be added?

Prof Nyarko: From what I am holding, if you observe clearly, both the new one and the one we had yesterday, that paragraph ends with “Director for Technical”, but it is supposed to be “Director for Technical Services”. Also, there is a Director for General Services which is missing. If you compare, Mr Speaker, with all due respect, let us go back to 22. It says:

“(1) The President shall, in accordance with Article 195 of the Constitution, appoint two Deputy Executive Directors for the Commission, one for Technical Services and the other for General Services.

(2) The President shall have regard to the Scheme of Service of the Commission in making the appointment of a Deputy Executive Director for Technical”.

For it to be completed, there should be Technical Services and General Services.

Mr First Deputy Speaker: You are right.

Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I follow what Prof Nyarko is suggesting, but let me advert his mind to the special nature of (2) where we are urging the

President by law to have regard to the scheme of service. The scheme of service places the issue in context. The General cannot be compartmentalised, but with the Deputy for Technical Services, the President must have regard to the scheme of service. So, it is not fatal not adding ‘Service’ to the Technical at the end at all, but I disagree with him urging us that we should again include ‘General’ because we cannot urge the President to have regard to General Services.

Scheme of service for the Deputy Executive Director for General Services—the General Services is general services, but Technical is specialised. In fact, in a lot of the provisions, we used the phrase that we must have expertise in the area. So, it is about paying attention to the expertise of the person we are appointing as the Deputy Executive Director for Technical Services. But as for General, anybody who exhibits experience in management and is qualified should be able to be appointed as a Deputy for General Services. So, the two are captured like that for some effect.

Mr First Deputy Speaker: Yes, Hon Member, we are speaking the same language. What he is saying is that from 22(1), the President shall appoint two; one in charge of General Services and another one in charge of Technical Services. Now, when you come to (2), it tries to qualify the Technical Services, so it is saying that the President shall have regard to the scheme of service of the Commission in making the appointment of a Deputy Executive Director for the Technical Services. Do you understand?

But for the General Services, there is no clause. So, he is proposing that we should not end the rendition at ‘Technical’. So, it should be Technical Services. So, we should add ‘Services’ to ‘Technical’. Is that not Prof Nyarko’s proposed amendment?

Prof Nyarko: Mr Speaker, I yield to my Senior to speak then I will come back.

Mr First Deputy Speaker: Yes, Mr Anyimadu-Antwi?

Mr Anyimadu-Antwi: Thank you, Mr Speaker. I think I would agree with the Professor because flowing from (1), when we come to (2), we are silent on the General Services and I think that is the point he is making, that the President shall have regard to the scheme of service of the Commission in making the appointment for the Technical Services. What about the General Services?

Mr First Deputy Speaker: No, do you know something? What this means is that the President may not have regard to the scheme of service in appointing the deputy for General Services. It is only when it comes to the Technical Services that he must take into consideration the scheme of service because of the technical nature of the work that the person is coming to do.

Mr Anyimadu-Antwi: Mr Speaker, one may ask why not the General Services? Why not? Because, (1) is talking about the appointment that the President is going to make for the two and (2) is flowing from (1). But we have

omitted the General Services. If there is any reason why we have to omit the General Services, I will yield.

Mr First Deputy Speaker: Mr Shaibu Mahama?

Mr Shaibu Mahama: Mr Speaker, Technical and General Services are very different. Technical Services are specialised areas that have to be looked at in making appointments. General can cover Finance, Human Resource (HR), so you do not want to say that the person you are bringing must have HR background, accounting background among others. That is why the General is not qualified. But the Technical has a specialised meaning and so in appointing the technical person, regard must be paid to the scheme of service. What exactly is Aquaculture and Fisheries looking at? But the General is general. General encompasses a lot of the other wings. So, the Director General sits there, then two deputies, one specialised, that is Technical. The other General has Finance, HR, and all of the other areas under it.

Mr First Deputy Speaker: Hon Member, let me ask this question. In appointing Deputy Directors, can we appoint any of them without reference to the scheme of service? *[Pause]*

So, Hon Members, I am not taking part in the debate, but let us look at it this way. The (2) should read: “the President shall have regard to the scheme of service of the Commission in making

‘the’ appointment of deputy executive directors”. Because, it is making reference to “the” appointment. Why do I say “the” appointment”? The appointment is making reference to the appointment in 22(1).

So, we *add* “s” to “director” to make it “directors” and we *delete* for technical but it is for—

Mr S. Mahama: Absolutely.

Mr First Deputy Speaker: And Hon Members, for it to be plural or singular, we would defer it to the drafters to use their approach, whichever they want to use.

Mr Annoh-Dompreh: Mr Speaker, I concede. We want to move with the speed of light. But I think in this matter, we will not be out of place if we listen to the sector Minister on such an important matter. I think we should hear from her. I am not disturbing her; she knows about it.

Mr First Deputy Speaker: Hon Member, when sector Ministers are sitting in silence watching the proceedings, it does not lie in our mouth to say that we want to hear from the sector Minister. Where there is a need to hear from the sector Minister, the Chairperson may do so. So once the Bill is brought to this particular House, we own the Bill. Because I do not consider this to be a policy issue *per se* but a drafting issue.

Yes, Hon Member?

5.08 p.m.

Mr Isaac Boamah-Nyarko: Thank you very much, Mr Speaker, as you indicated and for purposes of guidance, the scheme of service of every institution or organisation is supposed to define the job description, the role and the qualifications and that comes from the deputies all the way down to whoever is the least person in the organisation. And so, it will be very incongruous for us to separate in the area of Deputy Executive Directors, one technical, without giving the other Deputy Executive Director a similar mandate to be appointed under the scheme of service. So, I agree with the proposal from the Speaker to suggest that the President should, guided by the scheme of service of the Commission, make an appointment of the Deputy Executive Directors and that should satisfy for both technical and administration.

Mr First Deputy Speaker: Hon Anyimadu-Antwi, then Hon Kingsley Nyarko you may own the amendment for us make progress.

Mr Anyimadu-Antwi: Mr Speaker, then I will defer to Hon Kingsley Nyarko because I was going to reiterate your guidance. Thank you.

Mr First Deputy Speaker: Very well. Hon Dafeamekpor?

Mr Dafeamekpor: Mr Speaker, humbly, if we go by your present amendment, then there is no need for (2) at all.

Now, Mr Speaker, (1) is to the effect that:

“The President shall, in accordance with Article 195 of the Constitution, appoint two Deputy Executive Directors for the Commission, one for Technical Services and the other for General Services”.

Now, Mr Speaker, respectfully, what does 195 say of the Constitution? It is to this 195(1), to the effect that:

“Subject to the provisions of this Constitution, the power to appoint persons to hold or to act in an office in the public services shall vest in the President, acting in accordance with the advice of the governing council of the service concerned given in consultation with the Public Services Commission”.

So, Speaker, in 21(1), it is already implied that the President, in appointing these two persons, will have some regard to some advice and consultation as to expertise or competence for the service concerned. But (2), why I agree with Prof Nyarko on leg one is that it is better framing, it is better drafting if we add services to technical, because the (2) is actually reminding the President that in making these two appointments, he must have regard to the technical expertise of the person.

So, for instance, in the scheme of things, when we say technical expertise, we are looking at somebody who is a marine biologist, or fisheries scientist, or some person of that calibre, and not MBA holders, Mr Speaker. So, the

general services, there is no need; it is already catered for in 22(1).

Mr First Deputy Speaker: I agree perfectly with you, but the point that you are making, you are speaking with regard to the person's qualification, and the person's qualification may be different from scheme of service.

Mr Dafeamekpor: Mr Speaker, 22(1) talks about qualifications generally in consonance with Article 195. Because when we speak of the Fisheries Commission, the governing body of the Fisheries Commission will give some advice as to the scheme of service, but in (2), why I think that the technical service, — the addition of the services is essential, like Prof said is that —

Mr First Deputy Speaker: So, let us look at it this way. Do you agree that in appointing the Deputy Director-General, the Deputy Director for general service, as well as the Deputy-General for technical service, you must have regard to the scheme of service in doing the appointment of both? But if you argue that clause (2) is not needed and should be deleted, I would agree.

Mr Dafeamekpor: Mr Speaker, now, my point is that if we leave the drafting the way you are suggesting, then we do not need 22(2), but if we merely add the services to qualify the technical, then 22(2) is needed. Because looking at the qualification of the Deputy Executive Director for general services, it is already contained in 22(1); the conditions under which he will be appointed is sufficiently provided for under 22(1). But 22(2) is

giving a special guide to the President that when he is making that other appointment, he should have regard to the scheme of service of the Fisheries Commission.

Mr First Deputy Speaker: And then the problem, having listened to them, that it is causing, is as if in doing the appointment for the Deputy Executive Director for general service, the President will not have regard to the scheme of service. Because by the express mentioning of only technical, then the general is excluded.

Mr Dafeamekpor: Mr Speaker, no, because 21(1) referenced Article 195.

Mr First Deputy Speaker: If the 21(1) referenced Article 195 for both the general and the technical, why then have the two, which will make reference to scheme of service for only the technical? That is where the problem is coming from. Do you get it?

Mr Dafeamekpor: Yes, I do.

Mr First Deputy Speaker: So, if the proposal is that the (2) is superfluous, in view of the (1), making reference to Article 195, then we can take a decision appropriately.

Mr Dafeamekpor: Mr Speaker, my Brother, Prof Kingsley Nyarko, I believe misread—to misread is mild language. So, he misapprehends the meaning of 22(2). There is a general qualification in 22(1). So, in appointing the Deputy Executive Director under 22(1), if you have MBA, you have some expertise in

general management, you can be appointed by the President. But in making the second Deputy Executive Director's appointment—

Mr First Deputy Speaker: Well, Chairman of the Committee, then we can come to the Minister. I can see the Minister is itching to speak.

All right, before the Chairman, let us hear Hon Anyimadu-Antwi.

Mr Anyimadu-Antwi: Mr. Speaker, I would want to urge upon Hon Rockson. Most of the time, look at a proposal that is brought, especially when we want to travel at the speed of light and if it is not causing any mischief—Now, the Hon Member identifies an omission and when the Speaker asked him, in all, if he is looking at technical, to say that technical is a specialised area, and therefore we have to omit the general one, it would mean that the President can ignore the scheme of service and appoint any other person to be a General Deputy Director. To me, that is absurd. So, let us cure it by the guidance that Mr Speaker gave.

But what you are suggesting, if we go by that, there will be a mischief caused, because there will be a vacuum and we would not have catered for the general services. That is how I would want us to look at it and cure it.

Mr Dafeamekpor: Mr Speaker, I did not say we should omit. I said the (2), the general qualifications to becoming a second Deputy Executive Director is catered well for under 22(1).

Now, this House is saying that in designating one to be in charge of the technical services, one cannot be merely looking at somebody who has experience in management, who has garnered the miles in management.

No. One must have regard to the scheme of service. What is the scheme of service for the Fisheries Commission? For instance, somebody with a lot of experience in marine biology — No, in all that. So, you cannot — When you are appointing somebody with experience as a Deputy Executive Director for General Services, in doing that for Technical Services, you must have a regard to the scheme of service of the Commission.

5.18 p.m.

Mr First Deputy Speaker: Yes. Hon Shaibu?

Mr Shaibu Mahama: Mr Speaker, to cure this—Because in all the explanations that we are giving, we seem to be confusing the scheme of service with qualification; they are two different things anyway. So, we want to say that:

“The President shall have regard to the Scheme of Service of the Commission in making the appointment of a Deputy Executive Director...”

Then we *delete* ‘for technical’.

Because if we come to three, Mr Speaker—

Mr First Deputy Speaker: That is the proposal that I have given.

Mr S. Mahama: Brilliant.

If we come to clause 22(3), it still refers to subclause 1. So, we take away ‘for technical’ and then leave it as such, so that we have regard to—

Mr First Deputy Speaker: More so, when the framers of the law want to talk about competence—Look at clause 20(3), which says:

“The President shall, in appointing the Executive Director, have regard to the competence, knowledge and expertise of the person being appointed.”

When they want to talk about the competency, the law expressly states it. So, Hon Kingsley Nyarko, I want you to own the rendition, and then I will put a Question on it.

Prof Nyarko: Mr Speaker, I agree with you because the sentence is not even complete; there was an omission. So, we have to *delete* “a” before “Deputy Executive Director” and *insert* “the”. Then, after the Director *insert* “s”. Then we end there. It will read as,

“The President shall have regard to the Scheme of Service of the Commission in making the appointment of the Deputy Executive Directors.”

Mr First Deputy Speaker: So, I intend to direct the drafters to take care of it.

Question put and amendment agreed to.

Clause 22 as amended ordered to stand part of the Bill.

Clause 23 — Functions of a Deputy Executive Director

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is, however, for the consideration of the House. Yes.

Mr Boamah-Nyarko: Mr Speaker, I want to make a proposed amendment to clause 23(3), which reads:

“One of the Deputy Executive Directors shall act in the absence of the Executive Director.”

Mr Speaker, from experience and practice, it has been an issue where there are two or three Deputy Executive Directors, and then when it comes to who acts in the absence of the Executive Director, it becomes a problem for the Executive.

At times, we do not know whether it is the Board that should take that decision as to who should act, or on what basis the Executive Director chooses one over the other. I believe that if we make an express insertion—

Mr First Deputy Speaker: Hon Member, what is your proposed amendment?

Mr Boamah-Nyarko: I am giving the background to my proposal.

Mr First Deputy Speaker: Yes, I agree with you. So, just propose an amendment.

Mr Boamah-Nyarko: My proposal is that the Executive Director may designate one of the Deputy Executive Directors to act in his absence. Most grateful, Mr Speaker.

Mr First Deputy Speaker: Hon Members, this has been an issue in this House. It is not new. It has been debated in this House, and there is a principle used. So, one of the Members should propose that particular principle so that we move ahead.

Yes, Hon Anyimadu-Antwi?

Mr Anyimadu-Antwi: Mr Speaker, I think this is where we need a Minister. Is it the General, Deputy General, or the Deputy Technical? Because if we say that the boss, that is the Executive Director, would have to make a determination—

Mr First Deputy Speaker: Hon Anyimadu-Antwi, this House has solved the problem by saying that in the absence of the Executive Director, the most senior Deputy should act. And that was an issue as to who is the most senior.

If you are all appointed on the same day, one letter will date before the other. That is how the House solved the problem. And the provision guides our appointing authorities as to what to do. Even if one is appointed in the morning and one is appointed in the afternoon, on the same day, one is senior to the other.

Hon Shaibu Mahama, is that not it?

Mr S. Mahama: Mr Speaker, exactly so. I remember when we were doing Hon Member's Bill those days, we were confronted with the same issue. Hon Matthew Opoku was at the helm of affairs when we were looking at it. Again, the reason we are now emphasising the "technical" is that we needed to know the type of business it is. If it is a technically biased business, then the Deputy in charge of technical is normally senior to the administration. So, this was the argument that was canvassed.

Mr First Deputy Speaker: But, Hon Shaibu, without going into the argument, how did this House resolve the issue, so that it will be a guide? Yes, let me hear from Hon Baafi, then I will come to the Chief Whip.

Mr Michael Baafi Okyere: Thank you, Mr Speaker. I think practically, what is most appropriate and can cure this issue once and for all is giving that authority to the Board to make that decision on behalf of the President. In that case, it will simplify the whole issue, because then, the Board will now exercise that discretion by selecting one

of the Deputy Executive Directors to act in that capacity.

Mr First Deputy Speaker: So, Hon Member, if the Executive Director will travel for one week, do you want a Board meeting to be convened to decide who should act?

Mr Okyere: Mr Speaker, the Board meeting can be called at any time. The point is that we are trying to solve this problem, because practically, I have seen that before. It happened when I was the Chief Executive Officer. When I was exiting from the organisation to go in contest for elections, there was a big problem, because the President—

Mr First Deputy Speaker: You have made your point.

Hon Dafeamekpor?

Mr Dafeamekpor: Mr Speaker, we are on a path that has not been beaten. By practice, this House directed that the order of ranking will be determined by the appointor.

So, for instance, when we receive communication from the President in respect of Supreme Court nominees, the one whose name appears first, and we go through the process and the person gets appointed, becomes the senior-most. I am telling the House and it is the practice. It is not about fairness. We cannot really legislate on this matter. So, we leave it to practice.

That is why this House says, whoever the President decides to appoint, in the

order that they come, the senior would take over from the substantive when he is absent. That is how we have guided a lot of public agencies that are confronted with this matter.

Mr First Deputy Speaker: He raised a salient point, and normally in history, the past might guide you. So, this issue occurred before this House. The drafters should have taken a cue from the debates. You have raised it again. Very important point. Can we use the way it was cured in the past to also cure it now? Yes?

5.28 p.m.

Mr Boamah-Nyarko: Mr Speaker, of course, the House had been previously guided to take a position on it. But post that decision that has been made by Parliament, there are other subsequent developments based on practice and experience that attention can—For example, there will always be seniority when the President is appointing. But we have had instances where, for example, they were all appointed around the same time.

But in between time, the person that one deems to be most senior would have either retired or resigned from the organisation and a new appointment would have been made. So, that second appointee would be junior in terms of—So, we can have technical—

Mr First Deputy Speaker: So, what it means is that if you and Mr Baafi are appointed as Deputy Executive Directors and Mr Baafi has resigned, after which

Dr Kabiru Mahama is appointed. When Mr Baafi was appointed first before you, he was your senior. But when he resigned and Dr Mahama is appointed, you then step into the seniority position and Dr Mahama then takes your place. So, that guides against any odds and prevents every situation. So, they would not now appoint Dr Mahama to be a senior to you, while you are there—Yes, so, Hon Members—

Yes, Dr Kyei?

Dr Asamoah: Mr Speaker, this issue has also happened in my organisation and I believe the rendition that has been used in the previous Act can be applied here and I will propose that 23(3) reads:

“The most senior Deputy Executive Director shall act in the absence of the Executive Director.”

Mr First Deputy Speaker: I will guide the drafters to provide the appropriate rendition if that is agreeable to the House. So, the drafters are accordingly directed to provide the renditions. Then, I will put a question on clause 23 as amended.

Hon Members, as many as a in favour of clause 23 as amended standing part of the Bill—

Mr Dafeamekpor: Mr Speaker, Dr Kabiru Mahama said something very instructive. He said the Bank of Ghana Act, 2002 (Act 612) has a similar rendition. So, they should have recourse to it and draft it to that.

Mr First Deputy Speaker: Yes, that is a direction to the drafters.

Clause 23 as amended ordered to stand part of the Bill.

Clause 24 — Secretary to the Board.

Mr First Deputy Speaker: Yes, Chairman of the Committee, any proposed amendment?

Mr S. Mahama: Mr Speaker, there is no proposed amendment.

Mr First Deputy Speaker: It is for the consideration of the House.

Dr Mahama: Mr Speaker, I beg to move that, clause 24(3), *delete* “Executive Director” and *insert* “Board” to read:

“The Secretary is answerable to the Board in the performance of the function of the Secretary.”

I am making this proposal mindful of the fact that he is the Secretary to the Board and he is supposed to be taking proceedings of the Board. He cannot be answerable to the Executive Director. There will be some kind of inconsistency there in terms of authority.

Mr Speaker, so that is my proposal.

Mr First Deputy Speaker: Hon Members—Chairman of the Committee first.

Dr Jasaw: Mr Speaker, I think he makes a compelling point and I agree.

Mr First Deputy Speaker: Very well. As many as are in favour of the proposed amendment—

Prof Nyarko: Mr Speaker—

Mr First Deputy Speaker: Is it also on clause 24(3)?

Prof Nyarko: Yes, please.

Mr First Deputy Speaker: Very well.

Prof Nyarko: Mr Speaker, we are gathered by what has been done before for consistency. It is an intuitive observation, but I have seen in other laws where, for example, Section 17(1)(c) of Act 1023 says that in the performance of the functions, be under the administrative control of the Executive Secretary.

It is there, so my point is that we need to reconcile; let us see what has been done before. So, that what we are doing right now does not deviate. So, I urge them, as far as we are looking at it, to also look at what has been done before on this same provision and see how we move forward.

Mr First Deputy Speaker: Yes, that is the proposal.

Mr Boamah-Nyarko: Mr Speaker, when we look at the heading, it says “Secretary to the Board”, so a board secretary so appointed by the Executive Director in consultation with the Board. The Secretary should be answerable to the Board. When we take the functions of the Secretary to the Board, he is

supposed to take minutes and be custodian of the documents of the Board and others not the—

Mr First Deputy Speaker: Yes, because of the way it is crafted here.

Mr Boamah-Nyarko: Exactly, so, I agree with Dr Kabiru Mahama that the Secretary should be answerable to the Board in the performance of—

Mr First Deputy Speaker: Hon Members, we should not confuse the issue. In some of the Bills, secretariat is established and that secretariat is established under the executive director and asked to perform. But in this particular case, the person is being asked to be directly answerable to the Board in the performance of the functions as a Secretary to the Board. So, I am tempted to agree with the proposed rendition.

Question put and amendment agreed to.

Mr First Deputy Speaker: Now, the entire clause 24, as many—

Yes, Dr Fred Kyei Asamoah?

Dr Asamoah: Mr Speaker, clause 24(1) reads:

“The Executive Director shall, in consultation with the Board, designate a person appointed under section 25, who is not below the rank of a Deputy Director as a Secretary to the Board.”

Mr Speaker, I beg to move that, before “Director”, *delete* “Deputy” to read:

“The Executive Director shall, in consultation with the Board, designated person appointed under section 25, who is not below the rank of a Director as a Secretary to the Board.”

Looking at most of the agencies and the work that is done at the Board, it should be a director, not a deputy director.

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, this particular point was extensively discussed and we were guided by the Commission and other stakeholders that it is safer that the fellow is a deputy director and above.

So, I submit that we should allow the current rendition to remain.

Mr First Deputy Speaker: But how do you juxtapose that argument, having regard to clauses 22 and 25? Because the provision in 24(1) is making reference to appointment under clause 25 and clause 25 is talking about appointment of other staff. It is clause 22 that is talking about appointment of deputy directors—Yes, it is a deputy director; then you are right.

Let me put a Question on the entire clause 24.

Clause 24 as amended ordered to stand part of the Bill.

Clause 25 — Appointment of other staff

Mr First Deputy Speaker: Hon Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House.

Yes, Hon Member?

5.38 p.m.

Mr S. Mahama: Mr Speaker, respectfully, my proposed amendment is in respect of sub-clause (3) of clause 25 and it reads:

“The Commission may engage the services of advisers and consultants on the recommendation of the Board.

Mr Speaker, if we look at the Ghana Gold Board Act, 2025 (Act 1140) specifically section 15(3), it has the same rendition, but it is trying to say that it is not at all times that the Ghana Gold Board would engage the services of a consultant.

Mr First Deputy Speaker: So, read the rendition.

Mr S. Mahama: So, Mr Speaker, this is the rendition as captured in the Ghana Gold Board Act, section 15(3), it says,

“The Gold Board may, for the effective and efficient performance

of the functions of the Gold Board, engage the services of ...”

So, Mr Speaker, my point is that “the Commission may” we can put a comma there and say, “for the effective and efficient performance of the functions or of its functions, engage the services of advisors”, and so on.

Mr First Deputy Speaker: Well, we avoid the use of possessive pronouns in drafting.

Mr S. Mahama: That is right.

Mr First Deputy Speaker: So, your proposal is that we should adopt the rendition in the Ghana Gold Board Act.

Mr S. Mahama: Exactly, Mr Speaker.

Mr First Deputy Speaker: So, now read the provision in the Gold Board Act, so that we can replace that with what is over here. Then I will put a Question.

Mr S. Mahama: So, this is how it reads, under section 15(3) of the Gold Board Act,

“The Gold Board may, for the effective and efficient performance of the functions of the Gold Board, engage the services of advisors and consultants on the recommendations of the Board of Directors.”

Mr First Deputy Speaker: So, what was the headnote?

Mr S. Mahama: Mr Speaker, it says, “Appointment of other staff”, just like we have in this case, “Appointment of other staff”.

Mr First Deputy Speaker: Hon Members, the proposed rendition is that, after “may”, *insert* “,” and *insert* “for the effective and efficient”. It does not change the rendition in any manner, but for consistency.

Question put and amendment agreed to.

Now, I will put the Question on the entire clause 25.

Yes?

Dr Mahama: Mr Speaker, I will need your guidance on this. Clause 25(1), “Appointment of other staff”, it reads,

“The President shall, in accordance with article 195 of the Constitution, appoint other staff of the Commission that are necessary for the efficient and effective performance of the functions of the Commission.”

The emphasis is on “shall”. My proposal was to replace the “shall” with “may”, being mindful of the fact that it is only when there is the need for the President to appoint.

Mr First Deputy Speaker: When it is a constitutional imperative, why do you choose to do or not to do? It is a constitutional imperative under Article 95, so you have no option.

Dr Mahama: All right. So, my understanding was that Article 195 provides that the President appoints staff for the running of several public offices. I was of the view that this will only be necessary if there is a need for the President to do so, but it is not necessary that he must always do that.

Mr First Deputy Speaker: No, that is not the meaning that we have gathered. You cannot have a Commission run by the Board and the CEOs or Executive Directors. There will be other staff and every employee is appointed by the President. So, the President cannot choose not to do it or to do it.

Dr Mahama: I am guided, I withdraw my proposal.

Clause 25 as amended ordered to stand part of the Bill.

Clause 26 ordered to stand part of the Bill.

Clause 27 — Funds of the Commission

Mr First Deputy Speaker: Hon Members, I am not getting the votes. Please, at least, let us vote.

Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: Hon Members, it is for the consideration of the House.

Yes, Hon Kabiru?

Dr Mahama: Mr Chairman, there is this issue we discussed, which has to do with clause 27(f). It is a standard provision, but we discussed it the last time, in reference to the Gold Board Act and I am here to get your direction on that.

Globally, there is now a drift from donations, gifts and what have you, due to the operational independence of these Commissions, in a manner that will not endanger their independence. I am just asking if it is still necessary, considering the current circumstances, to keep it. Otherwise, I would have proposed for the deletion of it.

Mr First Deputy Speaker: I guess you do not want the Fisheries Commission to survive. The Fisheries Commission, that is implementing a lot of international conventions, should not take donations nor grants?

Dr Mahama: Mr Speaker, they could take, but that would have been captured under Internally Generated Funds, but to make it clearly stand out—

Mr First Deputy Speaker: No. Donations and grants cannot be Internally Generated Funds (IGF); it cannot be.

Mr S. Mahama: My younger Brother will soon get to know that we still need donations, gifts and grants.

Clause 27 ordered to stand part of the Bill.

Clauses 28 and 29 ordered to stand part of the Bill.

Clause 30 — Borrowing powers

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendments.

Mr First Deputy Speaker: It is for the consideration of the House. Yes, Hon Member?

Mr Abdul-Fatawu Alhassan: Mr Speaker, I wish to propose—If you look at how the rendition of clause 30 goes, it says:

“(1) Subject to Section 76 of the Public Financial Management Act, 2016 (Act 921) ...”

Mr Speaker, we know that Article 181 of the Constitution also comes in handy in this regard, so, if we can bring in Article 181 as well.

Mr First Deputy Speaker: Yes, Hon Members, that has been the rendition. I intend to put the Question—

Hon Members, the proposal is after Act 921—Very well. So, it should be:

“(1) Subject to Article 181 and Section 76 of the Public Financial Management Act, 2016 (Act 921), and with the prior consent in writing of the Minister responsible for Finance, the Commission may borrow money for the purposes of

the performance of the functions of the Commission under this Act”.

Question put and amendment agreed to.

Clause 30 as amended ordered to stand part of the Bill.

5.48 p.m.

Clause 31 to 34 ordered to stand part of the Bill.

Clause 35 — Sources of money for the Fund.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Yes, Dr Kabiru Mahama?

Dr Mahama: Mr Speaker, “Sources of money for the Fund” — clause 35. In the various provisions, talking of standards, usually, we put percentages of fees that are going to the Commission for licences, permits and any other authorisation by fixing — And I was thinking that to give certainty and predictability of resources to the Fund, we should put a floor on the percentage, so that we would say maybe, at least 5 per cent. Otherwise, if we leave it the way it is, the Fund will be starved of resources because it is left at the discretion of the managers of the Fund. That was the proposal I was sticking to.

Mr First Deputy Speaker: Well, Hon Members, it has its advantages and disadvantages. Once you put the percentage, where we can be given more, the person would say this is the percentage we are entitled to. So, my understanding is that this Bill is leaving it to the discretion of the Minister. That is why the law, contrary to others, is saying “as may be approved by the Minister in consultation with the Minister responsible for Finance”. But the floor is now open. Let me hear from the Hon Member for Kwesimintsim. Did I get the constituency right?

Mr Philip Fiifi Buckman: Yes, Mr Speaker. It is not in relation to his. Mine is in relation to —

Mr First Deputy Speaker: Well, the guide is that if a matter is under consideration, wait for it to — Very well. Yes?

Dr Mahama: Mr Speaker, I understand that discretion. But like the Minerals Development Fund, we put percentages there because when we are creating funds, we want to be sure that people do not leave it to their whims and caprices. I was just thinking that the sponsors of the Bill would have been mindful of that. But if they think that it is all right in its current form, I will rescind my debate. But it is something that they should think through.

Mr First Deputy Speaker: Very well. Hon Members, he said he is abandoning his amendment. Yes, Hon Member for Kwesimintsim?

Mr Buckman: Mr Speaker, I was looking at clause 35 (1) (b), “Damages, compensations...” — *[Interruption]*

Mr First Deputy Speaker: Hon Member for Kwesimintsim, you have the floor.

Mr Buckman: Mr Speaker, about clause 35 (1) (b) “damages, compensations and costs granted...” it is “granted”, but I suggest it should be “awarded by the courts”. Compensations are awarded by the courts.

Mr First Deputy Speaker: Well, I have no fixation. The court grants damages or they award. There is no difference. What is the difference?

Mr Buckman: Mr Speaker, for grants, we seek for it, but if we are talking about the courts, it is —

Mr First Deputy Speaker: Have you read the provision in the case of *Dam vs. J.K. Addo and Brothers [1962]*? The court cannot grant you what you do not ask for. So, definitely, by way of relief, you must be seeking for damages.

Mr Buckman: Yes, but, my Lord, respectfully, the courts will grant what you ask for.

Mr First Deputy Speaker: I am not a judge.

Mr Buckman: Mr Speaker—

Mr First Deputy Speaker: Very well. Well, it is for the consideration of the House. The proposal is to *delete*, “grant”

and *insert* “award”. Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, I am struggling to understand what this difference will bring. I recommend we allow the current rendition to stay. Thank you.

Mr First Deputy Speaker: Well, the value will be the same. And the meaning is clear. Very well.

Hon Annoh-Dompreh?

Mr Annoh-Dompreh: Mr Speaker, with your indulgence, this is not on clause 35 but it is a just a slight observation on clause 32 (1) —

Mr First Deputy Speaker: Well, Hon Member, then you are very wrong in arresting the Motion putting the question on clause 35, only for you to take us to clause 32.

Mr Annoh-Dompreh: Mr Speaker, when you are done, we will come back.

Mr First Deputy Speaker: Yes, the question is on clause 35. Yes, Hon Kabiru?

Dr Mahama: Mr Speaker, still on clause 35 (1) (c), “sums of money received for compounded offences”. Compounded offences is a term of art and I propose that we provide for it in the interpretation clause.

Mr First Deputy Speaker: So, in this case, do you want us to amend it here?

Dr Mahama: I am just creating — in case, Mr Speaker, I am not —

Mr First Deputy Speaker: Yes, we are learning. What we normally do is when we get to interpretation, then you ask that we address it at the interpretation provision. Or Hon Anyimadu-Antwi, is that not how we do it? Yes, Hon Member at the back, you have the floor.

Mr Akwasi Gyamfi Onyina-Achemapong: Thank you, Mr Speaker. Mr Speaker, for the sources of funding, I do not see proceeds from the sale of assets as part of source of funding. I propose that we also add “proceeds from the sale of assets” to this. Because, it is capturing “compensations” and “sums of money received for compounded offences”.

Mr First Deputy Speaker: Yes, Hon Members, the proposal is for the consideration of the House. Please repeat your question.

5.58 p.m.

Mr Onyina-Acheampong: Mr Speaker, I was saying I do not see “proceeds from the sale of assets” in this.

So, I am proposing that we add for the sources of money for the Fund “proceeds from the sale of assets” as 35(1)(f). Thank you.

Mr First Deputy Speaker: Well, Chairman of the Committee, do they have a right to dispose of their own assets having regard to clause 2(2) which says: “...acquire and hold property, dispose of

property, and enter into a contract or any other related transaction”. So, the proceeds of the sale, should it come to them as income or it goes to the consolidated fund?

Yes, Hon Member?

Dr Mahama: Mr Speaker, I think the fund here is in reference to the fisheries and aquaculture development fund. But when you go to clause 2, you are talking of the Commission so they are two different things.

Mr First Deputy Speaker: Yes, you are right. So, it therefore means that your proposal cannot be carried.

Yes, Hon Member?

Mr Ralph Poku-Adusei: Mr Speaker, we are on clause 35, “Sources of money for the Fund”. Yes, when you come to clause 30, the Fund will have borrowing powers, all right. But if you look at it, for specific purposes, it says that “...for the purposes of the performance of functions of the Commission under this Act”. So, when you come to “sources of money for the Fund”, it has to come in here whether the Commission can borrow—

Mr First Deputy Speaker: Hon Member, is the funds of the Commission, not different from the Fisheries and Aquaculture Development Fund? The funds of the Commission is clause 27 and then the Fisheries and Aquaculture Development Fund is clause 33 and clause 35 is the source of funding for clause 33.

Mr Poku-Adusei: Yes, and I am saying that with the source of funding, does that mean that the Commission cannot borrow to fund the Commission? Because it is not here. So, I am proposing that we introduce under clause 35 that they can borrow as a source of fund. That is what I am proposing.

Mr First Deputy Speaker: Well, I am not getting it, but it is for the consideration of the House.

Yes, Mr Shaibu Mahama?

Mr Shaibu Mahama: Mr Speaker, I do not think that one sits well with the establishment of a Fund. And so, I think he should abandon that. If we look at sources of funds for the Commission itself, that is a different thing. But the establishment of a Fund is purposeful. And so, you would want to look at areas where you can mobilise. But to go and borrow to establish a fund, it begs a question. But this is different from the sources of funds for the business. But the establishment of a Fund to do some operations of the institution and so borrowing will not sit well.

Mr First Deputy Speaker: Hon Members, to explain it further, the Commission has a function to perform based on the functions of the Commission, they have the power to borrow money to finance the performance of their functions. And it is not the functions of the Commission to finance the Fisheries and Aquaculture Development Fund. So how can the Commission go borrow money and instead of using the money for its

activities, use the money to now finance the Fund.

Mr Poku-Adusei: That is exactly what I am saying. The establishment of fisheries—so you take it from clauses 33 – 35. Clearly, I agree and I accept that there is a fund.

Mr First Deputy Speaker: So, what is your proposed amendment?

Mr Poku-Adusei: The proposed amendment is that under the fisheries and aquaculture development fund, they should be permitted as part of their sources of fund to borrow for the fund. That is what I am proposing.

Mr First Deputy Speaker: But with the fisheries and aquaculture development fund, show me by law where they have power to borrow?

Mr Poku-Adusei: Yes, but if you have power to borrow, it is for a purpose. That is why they are two separate and distinct—

Mr First Deputy Speaker: No, you see, the law is establishing the fisheries and aquaculture development fund. This fund is different from the fund of the Commission. And when the Commission itself borrows money, it is supposed to go to their fund. It cannot come to this particular fund. And this fund as established, the law does not give it the power to borrow and these are the source by which it can get its money. So, if you are saying that they should borrow, where lies their power to borrow under this law, the fund that we are

establishing. They do not have a borrowing power. It is only the Commission that has a borrowing power.

Yes, Dr Kabiru?

Mr First Deputy Speaker: Mr Speaker, to add to that, you cannot borrow on the back of a fund that has no investment capacity. And this is common among all the funds that have borrowing powers. And to that extent, I think that we should leave it as it is and leave that power to—

Clause 35 and 36 ordered to stand part of the Bill.

Clause 37 – Management of the Fund

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr Kwabena Okyere Darko-Mensah: Yes, Mr Speaker. I have an amendment to make. I want to add a new paragraph to clause 37(4)(b) that despite 37(4), “the Minister may issue guidelines for the resource under the fund” so I am saying that despite clause 37(4), *insert* “the amount should not be—

Mr First Deputy Speaker: So, which of the provisions are you proposing amendment to in clause 37?

Mr Darko-Mensah: I am adding a new amendment—

Mr First Deputy Speaker: A new sub-clause? Then you have to say so.

So, you are adding a new clause if agreed, will be 37(6)?

Mr Darko-Mensah: I would have loved it to be 37(4)(b) instead of 37(6)—*[Interruption]*—But you can insert it. The drafters can do it.

Mr First Deputy Speaker: Yes, so propose your amendment.

6.08 p.m.

Mr Darko-Mensah: On 34(d), despite 37(4), the Minister shall not spend less than 50 per cent of the amount on objects 34(c), which is provide assistance to small-scale fishery and aquaculture enterprises.

Mr Speaker, the reason being that all the other objects of the fund are for administrative purposes, but the idea is to invest in the actual productive sector or the productive aspects of the objects of the fund. Therefore, even though the Minister may have the right to give those instructions on how the funds should be spent, what we are saying is that not less than 50 per cent of that amount of money should be spent on or provide assistance to small scale fisheries and aquaculture enterprises. So that productivity can be generated and out of that productivity, we can get more taxes from them and many other incentives to support the other administrative aspects of the objects of the fund.

Because if we take the first object which is clause 34(a), “finance the promotion and development of

fisheries”, it is general; it is just administrative. If we take clause 34(b), “fund the activities of the Commission in respect of monitoring, control and surveillance of”, it is just expenses. If we take clause 34(d), it is funding the operationalisation of the co-management committees, and we know when committees come, it is sitting allowances; just expenses. If we take clause 34(f), “fund research and studies in marine fisheries, inland fisheries and aquaculture sector”, they are all activities of expenditure. But when it comes to the investment with the small-scale fisheries and aquaculture enterprises, then we are sure that we are investing directly in the productive engine of the fisheries or the fund. I believe that we should also find a way for the Minister not to spend not less than 50 per cent of these funds in the productive aspects.

Mr First Deputy Speaker: Your proposal is against 37(4), which states:

“The Minister may issue guidelines and further directives that are necessary to guide the use of the resources under the Fund”.

Mr Darko-Mensah: Yes, so we are adding it to that so that we can—

Mr First Deputy Speaker: Yes, Chairman of the Committee?

Dr Jasaw: Mr Speaker, my Hon Colleague has a very good argument, except that I do not agree with him because of the very wording of 37(4). “The Minister may issue guidelines and further directives...”, so these will be

expressed in the guidelines and the guidelines will be informed by policy directives as and when there are new policy directives, new Government focus, new objectives for the sector, and so on.

So, I think that it is safer not to gag the ministerial powers in administration or use of the fund in law at this stage. Let us allow the guidelines to take care of that and always direct percentages as and when the focus is required.

Thank you.

Mr First Deputy Speaker: Yes, Hon former Minister, what do you say to it?

Mr Darko-Mensah: Mr Speaker, I believe that when a Bill comes to the House, we represent the people of Ghana and we are looking at areas of productivity that we can invest in. The Minister may have all the powers, but we all know that it is better for us to direct the Minister. That is why the law is here. So, it will provide a certain level of certainty in the development of the fisheries industry.

Mr First Deputy Speaker: So, what do you say to the fact that you make that provision in the law, then you again go to give the discretion to the Minister to provide guidelines and directives.

Mr Darko-Mensah: Yes, Mr Speaker, we have given him discretion to take decisions on the other 50 per cent.

Mr First Deputy Speaker: You know the Minister is not the Commission. So,

the Minister is at the Ministry. It is the Commission that will have to use this particular fund for intended objectives as spelled out. Now, they do not want the Commission to do it on their own, but subject to a guideline and directives that will be provided by the Minister. You think the Minister, in providing the guideline and the directives, will not take into consideration that more of the money will go to this place instead of this place? That is why he is of the view that your concern can be addressed by the Minister here.

Mr Darko-Mensah: Yes, but we want certainty in the investment of the area because, like the Constitution of this country, people can take all sorts of decisions, but the Constitution guides everybody. The Act guides everybody. The Legislative Instruments (L.I.s) we will be passing will guide everybody. So, I believe that, since we have got the opportunity to insert —

Mr First Deputy Speaker: For instance, Hon Member, you have been a member of the Committee on Subsidiary Legislation for long. At that particular level, you realise that in making the law, we even defer to the Minister to bring regulations to back the law. In a similar way, the law is giving the opportunity to the Minister to come out with guidelines and directives as to how that fund is supposed to be used. Yet, you want us to provide a percentage in the law?

Mr Darko-Mensah: Mr Speaker, I live in the coastal areas and we know the difficulties with productivity in these areas.

Mr First Deputy Speaker: Well, propose the amendment and let me put a Question so that we avoid —

Mr Darko-Mensah: Mr Speaker, the proposed amendments:

“37(4)(a) Despite 37(4), the Minister shall not approve less than 50 per cent for object 34(c).”

Mr First Deputy Speaker: Hon Minister, show us by the provision where the Minister will have to give approval.

Mr Darko-Mensah: It says that:

“The Minister may issue guidelines and further directives that are necessary to guide the use of the resources under the Fund.”

Mr First Deputy Speaker: Yes, so the Minister does not give an approval. The Minister provides guidelines and directives.

Mr Darko-Mensah: Yes, Mr Speaker, I agree with you.

Mr First Deputy Speaker: You understand? The law in clause 33 is establishing the fund. Subsequent clauses are establishing the objects and the sources of funding and whatever fund that is due to be used towards the object. The Minister then provides directives and guidelines. So how do we then turn it to say that subject to clause 34, the Minister shall not approve when the Minister is not giving an approval right in the law?

Yes, Hon Anyimadu-Antwi?

Mr Anyimadu-Antwi: Mr Speaker, I think what Hon Member would want to say is that he would want us to guide the Minister in issuing the directives that at least 50 per cent of the moneys must be used for the sector. That is what I think he is proposing. That the Minister issuing the directives —

Mr First Deputy Speaker: So, you can help him with the rendition so that we then proceed.

Mr Anyimadu-Antwi: Right. We will look at it. Maybe we can flag it and look at it later.

Mr First Deputy Speaker: So, Hon Anyimadu-Antwi, what do we do regarding clause 37? Should it be stood down?

Mr Anyimadu-Antwi: Mr Speaker, I think the Chairman suggested across us that we can do it at second consideration.

Mr First Deputy Speaker: Very well. Then I will put a Question.

Mr Anyimadu-Antwi: But my Colleague has another proposal.

Mr First Deputy Speaker: Yes?

Mr Poku-Adusei: Mr Speaker, still on clause 37. Mr Speaker, we should look at clause 37 as a whole. And if we look at clause 37(3), it reads:

“The Management Committee shall, in consultation with the

Board, make recommendations to the Minister regarding the disbursement of the Fund.”

And when we read clause 37(4):

“The Minister may issue guidelines and further directives that are necessary to guide the use of resources under the Fund.”

Now, my proposal is that, the Minister’s decision to issue the guidelines and further directives should be based on the recommendations to the Minister and the reason for that is that, it will avoid any and every potential conflict that may arise between the Minister and the Management Committee. So, my proposal is that clause 37(4) should be subject to clause 37(3),

so that the Minister does not have an open-ended power to propose guidelines that may be wholly inconsistent...

6.18 p.m.

So, that the Minister does not have an open-ended power to propose guidelines that may be wholly inconsistent with some of the decisions that the management will recommend to the Minister. So, what I am proposing is that clause 37(4) should read, “Subject to the recommendations—

Mr First Deputy Speaker: Yes, Hon Member, I am not cutting you short. But assuming you are the fund management committee, do you want the fund management committee to recommend

to the Minister that he or she should guide you in using the money? Is that what you are saying—So, what are you saying?

Mr Poku-Adusei: What I am saying is that we have clause 37. Under clause 37, we have a management committee in charge of the day-to-day management of the fund. We should not have a situation where the Minister and the committee responsible for management are not working together. Whatever it is, ultimately, we should assume that the Minister is interested in ensuring that the fund is put to a good use.

And it is the same objective that the committee should also have, so what I am saying is that the Minister, in providing the guidelines, should take into consideration the recommendations that should come from them.

Mr First Deputy Speaker: But if you read 37(3) and (4), is it different? Because 37(3) says:

“The Management Committee shall, in consultation with the Board, make recommendations to the Minister regarding the disbursement of the Fund.”

So, they make recommendations to the Minister; then, consequently, the Minister may issue guidelines and further directions that are necessary to guide the use of the resources under the Fund.

Mr Poku-Adusei: Mr Speaker, you just made the point I was making. You

introduced the word “consequently”, which is not even here. So, that “consequent” is the subject to—

Mr First Deputy Speaker: No, I need not put it here. In my explanation to you, I am telling you.

Mr Poku-Adusei: Let me put a proposal.

Mr First Deputy Speaker: Well, Hon Anyimadu-Antwi, help us in the circumstances.

Mr Anyimadu-Antwi: Mr Speaker, what my Colleague should understand is that the Minister is at the top and the recommendations are being made to the Minister before the Minister issues the guidelines. So, it is embedded. What, I think, he would want to say is that the Minister must not ignore the guidelines.

Mr First Deputy Speaker: That case would be deviating from the general principle that the recommendations are not binding.

Mr Anyimadu-Antwi: There is a Board, so the Minister has the mandate to go by the directive.

Mr First Deputy Speaker: Do you still want to litigate the matter?

Mr Poku-Adusei: No, it is not a litigation; I want to provide a better explanation.

Mr First Deputy Speaker: Then propose a better rendition.

Mr Poku-Adusei: Mr Speaker, the point is that it is embedded when we use the purposive approach to interpret the Act to achieve the same results. But when you are looking at the literal approach to interpretation—

Mr First Deputy Speaker: Propose a rendition.

Mr Poku-Adusei: Mr Speaker, what I propose is that clause 4 should read:

“The Minister, upon receipt of a recommendation from the Management Committee, acting in consultation with the Board, issue guidelines and further directives that are necessary to guide the use of resources under the Fund.”

Mr First Deputy Speaker: So, Hon Member, how is what you are proposing different from the combined effect of 37(3) and (4)?

Mr Poku-Adusei: It will avoid ambiguities when it comes to the interpretation of the Act.

Mr First Deputy Speaker: Well, I do not think the provision is ambiguous.

Mr Poku-Adusei: Mr Speaker, it is a fact.

Mr Speaker: Yes, Hon Shaibu Mahama.

Mr S. Mahama: Mr Speaker, I think we are all just dancing around the same thing. The Minister appoints the members and the chairperson. The

members and the chairperson, in the use of the funds, make recommendations to the Minister. In considering those recommendations, the Minister issues guidelines as to how the funds be used. So, it flows. There is absolutely nothing wrong.

Clause 37 to 41 ordered to stand part of the Bill.

Mr Annoh-Dompreh — *rose* —

Mr First Deputy Speaker: Yes, Hon Minority Chief Whip?

Mr Annoh-Dompreh: Mr Speaker, with respect, I had engaged my respected Whip and we had come to an agreement that we would be exiting on 40. He has, however, appealed, together with the Chair, that we should do it up to 50.

I want it on record. I do not want us to get to 50 and then it becomes another matter, please.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I agree.

Clauses 42, 43 and 44 are ordered to stand part of the Bill.

Clause 45 — Fisheries for endangered, threatened and protected species

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Yes, Hon Kwame Anyimadu-Antwi.

6.28 p.m.

Mr Anyimadu-Antwi: Mr Speaker, am I seeing the United States dollars quoted in here? I want the Chairman to educate me on why we are quoting in dollars. Because when it comes to penalties, we have the penalty units and that is what guides us.

So, if we have moved from cedis to United States dollars, I would want to be educated on why we would want to — Because we want to avoid a situation where other organisations may impose certain things on us and we may be hanged with that.

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, in fact, I raised this matter during the deliberations with the drafters from the Office of the Attorney-General and Ministry of Justice and they provided three other legislations in which we did that. We are actually using the cedi equivalent. So, we are not legislating—*[Interruption]*—Yes, the cedi equivalent.

These are special provisions, and in the Ghana Maritime Authority Act, 2002 (Act 630), we have similar provisions. These are matters in respect of the penal regimes in the marine area and the high seas. So, I got convinced and —Yes, Mr

Speaker. So, it has been done by this House in three other legislations. We are not legislating a penal provision citing US dollars. We are saying the cedi equivalent; that is the benchmark. I got convinced and it stayed in the provision.

In the Ghana Maritime Authority Act, 2002 (Act 630), it is there and I think it is also in the new Ghana Shippers Authority Act, 2024 (Act 1122).

Mr First Deputy Speaker: So, Mr Anyimadu-Antwi, are you all right with the explanation?

Mr Anyimadu-Antwi: Yes, Mr Speaker, but I cannot say much because I am not just comfortable. I am not clear about the fishing industry, but some are even quoting in million dollars, but they say it is fishing vessels and they have money. We should be very careful not to hang ourselves.

Mr First Deputy Speaker: Hon Members, in that industry, if we want to look at the value of money involved, then it would be a different ballgame altogether.

Yes, Prof Nyarko?

Prof Nyarko: Mr Speaker, though the veteran, Mr Anyimadu-Antwi, has yielded, I still think that we should be very careful in pegging our currency to foreign denominations or currencies. What will change if we use our own currency in determining the sanction? What is wrong?

Mr First Deputy Speaker: So, Prof Nyarko, what happens if this amount we are talking about is part of the agreement, treaties and conventions that we have ratified?

Prof Nyarko: Mr Speaker, if this is provided, I would not contest that further, but I am saying that I do not think that if we use our local currency, it will affront or offend any international treaty.

Mr First Deputy Speaker: No, once you we have signed the treaty, whatever is contained in the treaty, ratified by this House, one cannot even dot an “i” or cross a “t”. That is the general principle.

Prof Nyarko: Mr Speaker, understood.

Mr Daniel Nana Addo-Kenneth: Mr Speaker, in that case, under your guidance, I think that the Act can then refer that one to be fined, under a treaty, so that that can be referred to, instead of quoting foreign currencies in our local Act.

Mr First Deputy Speaker: That would be very novel. I do not know; Hon Members, do we cross-reference our Act to treaties and conventions? I have not seen such a cross-reference before.

Mr Addo-Kenneth: Mr Speaker, I take a cue, but I do not know whether the amount can also be looked at in terms of penalty units and all. This is because quoting dollars when we are all trying to “de-dollarise” our economy and putting somebody’s currency in our —

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I have made the point that I raised it with the drafters, then they brought the Ghana Maritime Authority Act and the Ghana Shippers Authority Act. They made the point that in that specialised area, in the marine area, these are the regimes. They showed me that just last year and the year before, this House crafted similar penal provisions like that. One provision in the Ghana Maritime Authority Act was even US\$5 million.

Once they showed that to me, I disengaged and we made progress. So, we have done it before. They made the point that it is also some of the regimes provided in the governance that we have ratified. So, we are just domesticating those provisions in our laws.

Mr Speaker, I thank you.

Mr Addo-Kenneth: Mr Speaker, I thought in the spirit of resetting, we could be resetting some of these things, but I yield.

Mr First Deputy Speaker: Hon Member, at the Consideration Stage of a Bill, we do not play politics. There is nothing like on a lighter note at the Consideration Stage of a Bill. The law governs all of us.

Yes, Hon Member?

Mr Poku-Adusei: Mr Speaker, I think we can make progress. Clause 45, the whole purpose of introducing the United

States dollars will have a target group, which will be the foreign group in this case. So, Mr Speaker, when we look at —

Mr First Deputy Speaker: Are you still belabouring this point? You are not convinced by all the explanations given?

Mr Poku-Adusei: No, I was just asking the Chairman to advert his mind to clause 45(5)(b) and (c). Clearly, the target groups are there. One is targeting Ghanaian industrial fishing vessel, which is the (b) and the other is targeting, in the case of foreign fishing vessel. I think that clearly, we can take out any foreign or forex component from the target group, looking at the Ghanaian fishing vessel, and maintain the United States dollars when we are dealing with foreigners.

I think the whole point is that we need to understand that it is because of the target group, which would obviously be the international target. That is why we are looking at dollars because the Foreign Exchange Act, 2006 (Act 723) itself prohibits the use of foreign currency in the country. So, if the target group is the local people and we want to still apply the foreign currency, then we are even going to the directness of violating the laws.

Mr First Deputy Speaker: My Brother, in fishing, the target group cannot only be locals.

Mr Poku-Adusei: Mr Speaker, no, what I am saying is that they have indicated it in the Act. They have separated the offences, the local and the

foreign, which is the Ghanaian industrial fishing vessel and the foreign fishing vessel; it is there.

Mr First Deputy Speaker: So, what is your problem?

Mr Poku-Adusei: My problem is that in the case of Ghanaian industrial fishing vessel, there should not be any foreign currency there. It should only be applicable when we are dealing with foreign fishing vessels. That is the point I am making.

Mr Speaker, thank you.

Mr First Deputy Speaker: Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I wish he were there. In fact, I was given a lecture —

Mr First Deputy Speaker: Who are the Members of the Committee on Food, Agriculture and Cocoa Affairs?

Mr Dafeamekpor: Mr Speaker, in fact, the fact that —

Mr First Deputy Speaker: Before coming to you, Majority Chief Whip, these things can be explained by you easily; that is the Members of the Committee on Food, Agriculture and Cocoa Affairs that oversee fisheries and aquaculture. You have been dealing with most of these conventions.

Mr Dafeamekpor: Mr Speaker, this goes beyond the Committee on Food, Agriculture and Cocoa Affairs. We had a

big stakeholders conference at the Alisa Hotel with over 20 stakeholders and this matter came up.

Mr Speaker, the fact that a vessel is registered as a Ghanaian vessel and is flying a Ghanaian flag can actually operate in the high seas and undertake fishing in the high seas both here and elsewhere. So, it is not really about a localised Ghanaian vessel. That is not the intendment here, so it is actually a regime that has been carefully borrowed from the international conventions that we have domesticated. I am saying that a similar regime in the Ghana Shippers' Authority Act, which is about the Shippers' Authority and its operations. There is the cedi equivalent of US\$5 million as a penal regime.

6.38p.m.

So, this is not strange at all, it is a standard provision, Mr Speaker. It is a standard regime.

Mr First Deputy Speaker: Yes, Hon Gakpey?

And I will come to Hon Anyimadu.

Mr Kwame Dzudorli Gakpey: Thank you, Mr Speaker.

Mr Speaker, these are standard regional things that they set in the USD. When you look at the tuna vessel, the International Commission for the Conservation of Atlantic Tunas (ICCAT), set their standard in USD so it is a regional thing. It is not solely for Ghana. It is a regional thing that we have adopted and our vessels also go there. So,

if you go there, and you want water or anything, you supply it in USD. It is the same for any vessel that comes to Ghana; it is standardised.

Mr First Deputy Speaker: Yes, Hon Anyimadu?

Mr Anyimadu-Antwi: Mr Speaker, I would want to find out from the Chair if this is the practice? For instance, if our fishing vessels commit an offence in other territorial waters are they treated the way we would want to treat them? If it is the agreement internationally guiding the principle, then we have to go by it.

Mr First Deputy Speaker: Thank you very much.

Hon Members—

Yes, Hon Gomado?

Engr Yao Gomado: Mr Speaker, internationally, per the Shipping Act or rules of International Maritime Organisation, the United State Dollar is the trading currency. So, anything that happens, if a fishing vessel hoisting the Ghana flag goes to the sea, whatever they catch, they trade it in foreign exchange. In fact, most of the fishes they catch, they do not sell them in Ghana. You would see them trading in Las Palmas and other countries. So, the dollar is the international trade currency. That is what I want to say.

Mr First Deputy Speaker: Very well.

Hon Members—

Yes?

Mr Annoh-Dompreh: Mr Speaker, with respect, not on the currency concerns, but on same clause 45, I have just made an observation. I realised clause 45(1) through to (2), Chairman, if I have your attention, we appear to be leaving out the Water Resource Commission. Clause 45(1) talks about the Wildlife Division of the Forestry Commission. And then clause 45(2) also repeats same but if you go to clause 42, the Water Resource Commission is mentioned. But under clause 45, the Water Resource Commission is relevant. I think we should not leave it out. We should be specific; the Water Resource Commission is important.

So may I propose that for clause 45, it is not a tall list— for clause 45(2):

“For the purposes of subsection (1), the Minister acting on the advice of the Board and in consultation with the Water Resource Commission, the Wildlife Division of the Forestry Commission, shall, by legislative instrument...”

We cannot leave out the Water Resource Commission.

Mr First Deputy Speaker: Yes?

Mr Dafeamekpor: Mr Speaker, I support the present amendment.

Mr First Deputy Speaker: But with this one, they are dealing with the endangered species, which comes directly under the Wildlife Division is

that not the reason for which the Water Resources Commission is taken out?

Yes?

Dr Jasaw: Mr Speaker, their mandates are interlinked in these resources and so the Committee has no problem with the proposal. I recommend that we accept it and make progress.

Mr First Deputy Speaker: Very well.

So, I will put the question on clause 45(2) first.

Is it (1) and (2) or just (1)? Hon Minority Chief Whip, propose the amendment to subclause (1) first and then we come to subclause (2). Or do you want us to defer to the drafters?

Mr Annoh-Dompreh: Mr Speaker, we may defer to the drafters, but I thought that it is not harmful; we should add it.

“A person shall not fish or for endangered threatened or protected species in the fishery waters of the Republic, unless with a written authorisation from the Commission in consultation with the Water Resource Commission, the Wildlife Division of the Forestry Commission”

And consequentially, same will be repeated.

Mr First Deputy Speaker: Very well.

Question put and amendment agreed to.

Clause 45 as amended ordered to stand part of the Bill.

Clause 46 ordered to stand part of the Bill.

Clause 47— Closed season.

Mr First Deputy Speaker: Chairman of the Committee?

Dr Jasaw: Mr Speaker, we have no advertised amendment.

Mr First Deputy Speaker: It is for the consideration of the House. Any proposed amendment?

Yes, Hon Kingsley Nyarko?

Prof Nyarko: Mr Speaker, clause 47(1); “The Minister may, by notice in the *Gazette* based on best scientific information”, Mr Speaker, with respect, I propose we *delete* “best”, then *insert* “verifiable”, so that we get “The Minister may by notice in the *Gazette* based on verifiable scientific information”. I am saying this because I do not know what best scientific information means. We cannot have best; what we can do is to verify the scientific information.

Mr First Deputy Speaker: So, the proposal is to *delete* “best” and *insert* “verifiable”?

Prof Nyarko: Yes, Mr Speaker.

Mr First Deputy Speaker: Hon Members, I will put a question on the proposed amendment.

Yes?

Mr Dafeamekpor: Mr Speaker, if we go by the present amendment, then we will have to define what verifiable scientific data is. So, I would rather suggest that we rather define “best scientific information” in the interpretation clause. Then it cures the mischief, honestly.

Mr First Deputy Speaker: Are you minded to abandon your amendment? Or I should put a question on it?

Prof Nyarko: Mr Speaker, I think, “best” is highly subjective. There are two options, Mr Speaker. Either we keep the “verifiable scientific information” or we can *delete* “best” and make it scientific information. But I prefer “verifiable” because we have scientific information.

Mr First Deputy Speaker: So, you have proposed an amendment. Your proposed amendment is to *delete* “best” and *insert* “verifiable”.

Prof Nyarko: Yes, please.

6.48 p.m.

Mr First Deputy Speaker: So, let me put a question. It must be a decision of the House.

Question put and amendment agreed to.

Now, I will put the Question on the entire clause 47. Yes?

Mr Annoh-Dompreh: Mr Speaker, may I find out from the Chairman, I see under clause 47(2) (a) and (b), (a) is talking about “at least three months in advance”. It reads:

“A declaration under subsection (1) shall be

(a) made at least three months in advance of the closed season, and

(b) given reasonable publicity.”

Can the Chairman explain this?

Mr First Deputy Speaker: You are omitting the word “and”, so you must read it conjunctively.

Mr Annoh-Dompreh: I have seen that. Thank you. Can he elucidate on that?

Mr Dafeamekpor: Mr Speaker, I see the mischief is detected. I think the language we employ in this House is “adequate notice”. [**An Hon Member:** Not reasonable?] No, “adequate notice” “and (b) given adequate notice” or “adequate publicity”.

Mr First Deputy Speaker: Yes, Hon Gakpey?

Mr Kwame Dzudorli Gakpey: Mr Speaker, whether “reasonable” or “adequate”, this is English. When it comes to “publicity”, “reasonable publicity” is not like giving public

notice. A lot goes into giving a public notice in terms of publicity: community engagement and advertisement. There are so many tools they are going to deploy. So, “reasonable” because it is being looked upon based on the availability of resources.

Mr First Deputy Speaker: Hon Members, let us take into consideration that they are not talking about notice here; they are talking about publicity. So let me hear Hon Anyimadu-Antwi then I will come to you.

Mr Anyimadu-Antwi: Mr Speaker, if what he is discussing in clause 47(2) is flowing from clause 47(1), 47(1) is talking about *Gazette* notification, and *Gazette* notification, officially, is enough. So, when we talk about the other publicity and other things, if it is *Gazette* notification, how many people even read the *Gazette* these days? Are we departing or adding on to the *Gazette* notification? If it is other publications, yes, we can say that in advance. But if the Ministry does *Gazette* notification, it qualifies, whether it is six months or not, nobody will know. It defeats the purpose of talking about publicity, because not many people read the *Gazette*. Even these days, how many people read the *Daily Graphic*?

Mr First Deputy Speaker: I think (2) is an addition. So, after you have done the *Gazette* notification, you must again go ahead to make “A declaration under subsection (1) shall be made:

“(a) at least three months in advance of the closed season.”

Well, there is an ambiguity there. Shall be made in what? Is it a newspaper of national publication or reasonable publicity? Normally, the terminology we use is a “newspaper of national circulation”. Yes?

Mr Dafeamekpor: So, Mr Speaker, clause 47(2)(a), “made in a newspaper of national circulation at least three months in advance of the closed season, and (b) given adequate publicity”, the adequate publicity could be advertorial.

Mr First Deputy Speaker: The notice may be adequate, but in terms of publicity, it must be reasonable. Because you use both the print and electronic media.

Mr Dafeamekpor: But, Mr Speaker, who determines the reasonableness of it?

Mr First Deputy Speaker: Then equally, who determines the adequacy of it?

Mr Dafeamekpor: The adequacy is that it has been *Gazetted* and adequately publicised. We can determine the adequacy. Frequency of publication can be determined. The areas that the publications took place can also be ascertained.

Mr First Deputy Speaker: So, if announcements are made at community radio centres in the affected communities, the radio and television in the affected communities, you consider this not to be reasonable?

Mr Dafeamekpor: Somebody will say it is not reasonable because it was not done in their language.

Mr First Deputy Speaker: In the same way, if you do it, somebody can say it is not adequate.

Mr Dafeamekpor: No, the adequacy is the reach.

Mr First Deputy Speaker: Let me hear Prof Kingsley Nyarko on this.

Prof Nyarko: Mr Speaker, to avoid issues of doubts, double meaning and ambiguity, we can do without reasonableness and adequacy. “There should be publicity”. For me, if we do away with these adjectives, and we end with “given publicity”, then nobody can hold anyone accountable. So, “given publicity” is enough because they can say that they use this medium or that medium. If we go into that trajectory of reasonableness and adequacy, then we will find ourselves in difficulties. Nobody can hold a person accountable for what they could not do Mr Speaker.

Mr First Deputy Speaker: Hon Anyimadu-Antwi?

Mr Anyimadu-Antwi: Mr Speaker, I want to propose that we may have to look at clause 47(1) very well. I want to propose that in addition to the *Gazette* notification, we should add “a newspaper widely circulated in Ghana”. Because the clause 47(2) is flowing from (1), so if we are talking about reasonable publicity and other things, we are saying that the *Gazette* is what we are expanding. But if

we have other notices, then (2) can make sense. Otherwise, when the *Gazette* notification is made, it ends there and it does not go anywhere.

Mr First Deputy Speaker: Hon Anyimadu-Antwi, clause 47(2) is an addition to (1). So, after we have done the *Gazette* notification, then (2) is saying that “A declaration under subsection one shall be made”. And here, they are introducing “a newspaper of national circulation”. Then in addition to “a newspaper of national circulation”, “and (b) given reasonable publicity”. So, it is not only *Gazette* notification, we make a declaration by *Gazette* notification.

After that, three months prior to the declaration, one must also give the notice in a newspaper of national circulation. Then it moves further to say that we must also give it reasonable publicity. So, your concern that people will not have access to the *Gazette* notification is addressed.

Mr Anyimadu-Antwi: Mr Speaker, then I would suggest that we should make (2) very clear that it must be in addition to (1).

6.58 p.m.

Mr First Deputy Speaker: It is clear; that is why it said: “A declaration under subsection 1 shall be...” So first, there must be a declaration in subsection 1, which is the *Gazette* notification. So, this is otherwise saying that the information per the *Gazette* notification, “shall be”, then the (a) and (b) comes. So, it does not create any ambiguity in relation to

publicising what is in the Gazette notification.

Yes, Dr Mahama?

Dr Mahama: Mr Speaker, I also want to go by the view that the reasonable publication should stand without us expunging “reasonable” from it. Because what is reasonable has been defined by some rulings, especially for some defamation cases when they give an order that one must retract and give reasonable publication to that effect. They usually use the extent of dissemination, Mr Speaker, to determine the reasonableness of the publication. It is not just the circulation, but how often has that particular publication been publicised, either every day within the week or for the 14 days. So, I think that the current rendition should still stay as reasonable publication without us expunging the adjective “reasonable” from it.

Thank you very much, Mr Speaker.

Mr First Deputy Speaker: Thank you. Yes, Hon Member?

Mr Poku-Adusei: Mr Speaker, if we go by what Prof Nyarko said and keep it as publicity, when we get to the interpretation, we can then define the form of publicity that we are exchanging.

Mr First Deputy Speaker: Well, the Rules guide interpretation. It is only when it is a term of act that it can be interpreted. Publicity, is it a term of act? So why would you then go and be making provision for interpretation of

publicity? So, these are some of the rules that guide us when we are doing drafting. It is only a term of act, something that is ambiguous, that if you do not provide a definition for it—But an ordinary person guided by those considerations that regulate the conduct of human affairs understands what we mean by publicity.

Yes, Prof Kingsley Nyarko?

Prof Nyarko: Mr Speaker, we do not have to make matters complicated for us. In years gone by, we were restricted regarding the media to use. Those times it was largely the print and the electronic, largely TV and radio, but we now have new media. We have several medium we deal with. The moment we introduce some of these subjective words, then somebody is going to tell us we said “reasonable”, but I did not see it on social media. But to protect ourselves, the use of publicity would mean it has been published. Whether it was done in the newspaper or it was done elsewhere, it has been published. With reasonableness, then we are opening ourselves up for so many issues and interpretation, so it is subjective. So, Mr Speaker, we can extricate ourselves from this by simply saying that it was publicised, simple. Otherwise, we will dance with words. Thank you very much.

Mr First Deputy Speaker: Hon Majority Chief Whip?

Hon Members, let us take it one after the other. So first, let us resolve the 47(2)(a). We all agree that the declaration shall be made at least three months in advance of the closed season

in a newspaper of national circulation.
Do we all agree on that?

So, may a Member move for that rendition to be adopted?

Very well. So, the new rendition will be:

“(2) A declaration under subsection (1) shall be

a) made at least three months in advance of the closed season in a newspaper of national circulation”.

Question put and amendment agreed to.

Mr First Deputy Speaker: Now, we have come to 47(2)(b).

Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, in 47(2)(b), I suggest should read:

“and given publicity in both the print and electronic media”.

Mr First Deputy Speaker: Well, the newspaper of national circulation is in the print. So, I do not read the (b) to be referring to publicity in the print media.

Mr Dafeamekpor: Yes, so, “given publication in the electronic media”.

[Pause]

Then, Mr Speaker, in the regulation, that will give effect—

Mr First Deputy Speaker: Hon Members, what I want to do is to leave it to the drafters to tidy it up for us.

Mr Dafeamekpor: Yes, so in the regulation, we can determine the frequency.

Mr First Deputy Speaker: So, subject to the drafters tidying clause 47 for us, I will then put a Question on clause 47 as variously amended.

Question put and amendment agreed to.

Clause 47 as amended ordered to stand part of the Bill.

Mr First Deputy Speaker: Hon Members, I direct the drafters to accordingly tidy up the provision for us.

Clause 48 to 50 ordered to stand part of the Bill.

Mr First Deputy Speaker: Yes, any indication?

Mr Dafeamekpor: Mr Speaker, that is so. Mr Speaker, I believe that we have done enough of the consideration. So, may we bring consideration to an end for today?

Mr First Deputy Speaker: Hon Members, I think we have done in excess of five hours. We have not? Very well. Then move a Motion.

Yes, we have come to the end of the Consideration Stage for today.

You may then move a Motion.

Majority Chief Whip (Mr Rockson-Nelson Etse Kwami Dafeamekpor):

Mr Speaker, thank you.

I move that in the absence of any further Business, we bring down the curtain on today's Business and come back tomorrow at midday.

Mr First Deputy Speaker: Hon Members, Motion for adjournment ably moved, any seconder?

Yes, Hon Minority Chief Whip?

Minority Chief Whip (Mr Frank Annoh-Dompreh): Mr Speaker, I rise to second the Motion moved.

Question put and Motion agreed to.

Mr First Deputy Speaker: Hon Members, the House is accordingly adjourned till Friday, 11th July, 2025 at 12 noon.

ADJOURNMENT

The House was accordingly adjourned at 7.17 p.m. till Friday, 11th July, 2025, at 12.00 noon.

